



ENTERTAINMENT COMBINED POLICY WORDING

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ABOUT THIS POLICY

This is your Entertainment Combined Policy, which sets out the insurance cover **you** have requested and which **we** have agreed to provide.

Insuring Agreement

In return for **you** paying the premium shown in the Schedule and any applicable **excess**, **we** will provide the cover given in this Policy subject to all limits, terms, conditions, notices and exclusions of this Policy.

Law & Jurisdiction

Unless otherwise shown in the Schedule, this Policy is subject to the law of England and Wales and to the exclusive jurisdiction of the courts of England and Wales.

Policy Interpretation

In this Policy:

- (a) a reference to any regulation or statutory provision will include reference to that provision as:
 - (i) amended, re-enacted or replaced from time to time; or
 - (ii) any equivalent legislation to the same general intent and effect in any other jurisdiction,
- (b) if any term, condition, exclusion or **endorsement** or part of this **policy** is found to be invalid or unenforceable, then the remainder will be in full force and effect,
- (c) any reference to the singular will include reference to the plural, and any reference to the plural shall include the singular,
- (d) the word 'person' refers to any entity or natural person unless otherwise specified by the **policy**,
- (e) where consent by **us** is required, such consent will not be unreasonably delayed or withheld,
- (f) headings are for information purposes only and are not to be construed as part of the **policy**.

Please contact **your** insurance broker as soon as possible if:

- (a) anything needs changing, or
- (b) **you** have any questions in relation this **policy**.

Signed on behalf of Liberty Mutual Insurance Europe SE (UK Branch)

The image shows a handwritten signature in blue ink next to the Liberty Mutual logo, which is a stylized blue illustration of the Statue of Liberty's head and crown.

Pierre-Edouard Fraigneau
Chief Underwriting Officer,
Liberty Mutual Insurance Europe SE

DEFINITIONS

This section contains words with a special meaning listed in alphabetical order. Where the defined words appear in bold anywhere in the **policy**, they will have the same meaning as defined below.

Ancillary Equipment

Air conditioning equipment, voltage regulating equipment, generating equipment, heat and smoke detection equipment, gas flooding cylinders, pipework and computer room partitioning equipment solely for use with **computer equipment**.

Buildings

The buildings of the **premises** including:

- (a) landlord's fixtures and fittings, fixed glass and sanitary ware;
- (b) foundations, walls, gates, and fences around and forming part of the **premises**;
- (c) outbuildings, annexes, gangways, conveniences, steel shipping containers and other structure;
- (d) extensions to the **buildings**;
- (e) buildings management and security systems;
- (f) fuel tanks, piping, ducting, cables, wires, and associated control gear, and accessories on the **premises** extending to the public mains but only to the extent they are **your** responsibility;
- (g) yards, car parks, roads, and pavements which partly or wholly serve to supply the **premises**;
- (h) wind turbines and solar panels attached to the **buildings**; and
- (i) landscaping and recreational features including ornaments, statues, and fixed signs but excluding neon or illuminated signs.

Business

Your business as shown in the Schedule but including:

- (a) the ownership, including repair, maintenance, or use, of **premises**;
- (b) the provision and management of canteen, social, sports, and welfare organisations, for the benefit of **your employees**;
- (c) the provision and management of security, fire, first aid, and ambulance services for the benefit of **your employees**;
- (d) private manual work, carried out within the **geographical limits** with **your** consent, for any of **your** directors, partners, or senior officials, by any **employee**;
- (e) the organisation of, or attendance at, trade fairs, exhibitions, and conferences within the **geographical limits**;
- (f) the repair or servicing of vehicles owned by, or leased, hired, or on loan, to **you**;
- (g) the training or retraining of any **employee** at Government or other training centres;
- (h) the organisation of or participation by **you** in fund raising or other charitable events;
- (i) the provision of nursery, creche or child care facilities where incidental to the **business**; and
- (j) the provision of car parking for the benefit of **employees**, customers and visitors

Computer Equipment

Any computer, hardware, software, communications system, electronic device, or any configuration of which, that processes, stores, transmits, or receives **data**. Computer equipment will also include any associated input, output, data storage media, interconnecting wiring, networking equipment or back up facility which is:

- (a) owned by **you**; or
- (b) leased or rented by **you**;

and for which **you** are legally responsible.

For the sake of clarity **computer equipment** does not include **portable computer equipment**.

Computer Virus

A piece of code that is designed to corrupt and which has the effect of corrupting and may destroy, alter, contaminate, or degrade the integrity, quality, or performance of **data** or any computer application, software computer network, or computer operating system and related software.

Contents

Machinery, plant and all other contents belonging to **you** or held in trust by **you** or for which **you** are responsible whilst at the **premises**, including:

- (a) **contents** in open yards;
- (b) **money** for an amount not exceeding GBP 1,000 unless Section 4 Money is shown as covered in the Schedule;
- (c) deeds, documents, manuscripts and business books, but only for the cost of the materials and works required in reproducing such records;
- (d) rare books or works of art not exceeding GBP 5,000 any one article or GBP 10,000;
- (e) tobacco, wines and spirits held for **business** entertainment purposes not exceeding GBP 1,000;
- (f) the contents of fuel tanks at the **premises** GBP 2,000;
- (g) directors', partners' and employees' personal effects of every description but excluding motor vehicles for an amount not exceeding GBP 1,000 any one person;
- (h) **computer equipment** including **media** for its value as materials, but not the **programs** or **data** other than the repurchase or relicensing costs of proprietary software and **ancillary equipment**.

For the sake of clarity contents does not include landlord's fixtures and fittings, **stock**, **entertainment equipment** and other property specifically shown in the Schedule.

Damage

Direct physical loss, physical damage or destruction to tangible property, which is both sudden and accidental. Damaged will have the equivalent meaning.

Defined Peril

Fire, lightning, explosion, aircraft or other aerial devices or articles dropped from them, riot, civil commotion, strikers, locked-out workers, persons taking part in labour disturbances, malicious persons other than thieves, earthquake, storm, flood, escape of water from any tank apparatus or pipe or impact by any road vehicle or animal.

Data

Information, facts, concepts, code or any other information of any kind that is recorded or transmitted in a form to be used, accessed, processed, transmitted or stored by **computer equipment** owned leased or rented by the **you** or for which **you** are legally responsible.

Entertainment Equipment

Equipment used in connection with your business, including but not limited to: audio and visual recording, broadcasting and editing equipment, **ancillary equipment**, musical instruments, sound and lighting equipment, props, set, wardrobe, tools and items of plant, owned by or on hire purchase or lease to or hired in, by or on loan to **you**, or held in trust by **you** and for which **you** are responsible.

Excess

The first part of each claim, for which **you** are responsible.

EU/European Union

Bulgaria, Croatia, Czech Republic, Estonia, Greece, Hungary, the Republic of Ireland, Latvia, Malta, Slovakia, Slovenia, Luxemburg, Sweden, Austria, Germany, Belgium, Finland, Denmark, Netherlands, Italy, Spain, France, Lithuania, Poland, Portugal, Romania, Cyprus.

Event Location

A location or venue being used for an event within the **geographical limits**.

Geographical Limits

For all Sections except Section 3, 5 and 6., the United Kingdom of Great Britain and Northern Ireland, including the Channel Islands and the Isle of Man.

Limit of Cover

1. The most **we** will pay, in respect of each Section or Extension as described under each Section or Extension unless shown as otherwise in the Schedule.
2. Limits which are described as 'Per **occurrence**' is the maximum amount **we** will pay in respect of a single **occurrence**, regardless of the number of **premises** or locations affected.
3. Where a limit is 'in the aggregate' this is the maximum amount **we** will pay in respect of claims under a particular Section or Extension or Endorsement during the **policy period**. This is regardless of the number of claims, **premises** or **occurrences**.

Media

Solely the materials on which **data** and **programs** can be stored but not the **data** or **programs** themselves.

Occurrence

Any one loss or series of losses resulting from one source or original cause.

1. Where any loss or **damage to property insured** directly caused by:

- (a) earthquake,
- (b) storm,
- (c) **terrorism**,
- (d) flood,
- (e) escape of water from water tanks or apparatus or pipes, or
- (f) riot or civil commotion,

then the loss or **damage** arising during a period of 72 consecutive hours will be considered a single **occurrence**, and to which the **excess** will be applied.

2. If the duration of the loss or **damage** from the stated perils, extends to beyond 72 consecutive hours, then **you** may decide to claim for two 72 periods, that is, two **occurrences** with a separate **excess** applying to each **occurrence**.
3. **You** may choose the date and time when any such period of 72 hours will begin provided that:
 - (a) **we** will not pay for any loss arising from **damage** occurring before the effective date and time of this Policy or for any occurring after the expiration date of this Policy; and
 - (b) no two 72 hour periods overlap and
 - (c) no period begins earlier than the date and time of the happening of the first recorded individual loss to **you** as a result of the above perils.

Policy Period

The period from the Effective Date to the Expiry Date as shown in the Schedule.

Portable Computer Equipment

Equipment used for the electronic processing, communication and storage of data that is designed to be carried on or by a person, consisting of

- (a) laptops, palmtops, notebooks and tablet personal computers;
- (b) personal digital assistants and smartphones;
- (c) removable vehicle satellite navigation systems and digital cameras;
- (d) printers, projectors, broadband modems and other devices which connect to other **portable computer equipment**; and
- (e) extending to include any necessary repurchase or relicensing costs of proprietary software (where the value is included within the **limit of cover**).

Portable computer equipment is limited to property belonging to **you** or leased, hired, rented, or licensed or on deferred purchase to **you**.

Policy Limit of Cover

The maximum amount **we** will pay in respect of a single **occurrence** in total across all Sections of this Policy. Such limit will only apply if shown in the Schedule of this Policy.

Premises

The **premises** as shown in the Schedule, including secure cash collection cabins in the site production areas with no public access at covered **event locations**.

Professional Fees

Architects', surveyors', consulting engineers', legal and other fees necessarily incurred in the **reinstatement** of the **property insured** but not for preparing any claim.

Programs

A sequence of instructions given to a computer which are either purchased or written on a custom basis owned leased or rented by **you** or for which they are legally responsible.

Property Insured

The items of property listed in the Schedule comprising of **building, entertainment equipment, portable computer equipment, contents** and **stock**, owned or used by **you** for the purpose of the **business**.

Reinstatement:

1. The rebuilding or replacement of property which may be carried out:
 - (a) in any manner suitable to **your** requirements;
 - (b) on another site.
- Or,
2. the repair or restoration of the property **damaged**.

In both cases, **reinstatement** will result in the **buildings** being returned to a condition which is substantially the same as but not better or more extensive than its condition when new.

Rent Payable

Rent payable by **you**.

Stock

The stock and materials in trade, including work in progress, at the **premises, your** property, or held in trust by **you**, or on commission, for which **you** are responsible or wish to assume responsibility.

Terrorism

Any action, threat of action, or attempt at action, by any individual(s) or group(s) of individuals or body or organisation(s), whether acting alone, on behalf of, or in concert with any other body, organisation, or government, where such action, threat, or attempt is designed to influence, intimidate, or coerce, any government or international governmental organisation or the population or any section of the population, or any community, and the action, threat, or attempt, is made for the purpose of advancing a political, religious, or ideological cause.

Transit

In transit by road, rail, or inland waterway, between any addresses within the **geographical limits** including any loading and unloading and whilst what is in transit is temporarily housed.

Unoccupied

Closed for **business** or not occupied for its usual **business** purposes or not physically visited or inspected within a period of 30 consecutive days.

Working Hours

The whole period during which the vehicle is being used by its driver in connection with **your business** including travel to and from the place of work and any break in such journey but will not include when the vehicle is parked for any overnight rest period.

You/Your

The party stated as covered shown in the Schedule.

We/Us/Our/

Liberty Mutual Insurance Europe SE, UK Branch and other insurers shown in the Schedule.

MAKING AND DEALING WITH A CLAIM

Notification

These claims notification conditions apply to the whole policy, **you** must make sure to read each Section of cover for information on how a claim will be settled for that Section.

In the event of learning of any circumstance which is likely to give rise to a claim under this section **you** must:

- (a) notify **your** insurance broker as soon as reasonably possible;
- (b) the police as soon as reasonably possible and acquire a crime reference number if the loss or **damage** has been caused by:
 - (i) theft,
 - (ii) malicious persons,
 - (iii) riot,
 - (iv) civil commotion, or
 - (v) labour disturbances.

Following **your** notification to **us**, **you** must:

- (a) provide all information that **we** request from **you** as soon as reasonably possible and cooperate fully with **our** investigation of a claim;
- (b) co-operate fully at all times with any lawyers and/or other advisers **we** appoint for the handling of a claim;
- (c) allow **us** to enter and inspect **your premises**;
- (d) not make or allow to be made on **your** behalf any admission offer or promise of payment without **our** written consent;
- (e) take all reasonable steps to recover property lost and otherwise minimise the claim; and
- (f) notify as soon as possible, the carrier of loss or **damage** in transit and try to obtain a written acknowledgement.

We are entitled, but not obliged, to take over and deal with, in **your** name, the defence or settlement of any claim.

Section 2 Business Interruption

In the event of learning of any circumstance which is likely to give rise to a claim under this section **you** must, at **your** own expense: make all reasonable efforts to and no later than 30 days after the expiry of the **indemnity period**:

- (a) provide details of the claim and any other applicable insurances;
- (b) provide to the insurance broker or, if the insurance broker or **we** require, any books of account, information or other evidence as may reasonably be required.

In the following cases, **you** must notify **us** within 48 hours and give **us** all the assistance that may reasonably be required, as soon as **you** learn of:

- (a) any complaint against the **premises** or its control;
- (b) if an application for renewal is to be opposed or that its consideration is adjourned or referred to the compensation authority or structural alterations are required;
- (c) proceedings against or conviction of the designated **premises** supervisor, manager, tenant or occupier of the **premises** for any matter whereby the character or reputation of the person concerned is affected or called in question with regard to their honesty, moral standing or sobriety;
- (d) change in tenancy or management of the **premises**;
- (e) alteration in the purpose for which the **premises** are used.

Section 5 Employer's Liability, Section 6 Public and Products Liability

In the event of learning of any circumstance which is likely to give rise to a claim under this section **you** must:

- (a) forward to **us** every letter, claim, writ, summons and process immediately once received without acknowledgement; and
- (b) advise **us** in writing as soon as reasonably possible if **you** have knowledge of any pending prosecution inquest fatal accident or ministry inquiry

Regardless of whether or not **we** take over the defence or settlement of any claim, **we** will have the right at any time to negotiate with any claimant.

In the event that **we** are able to settle the claim but **you** wish to continue to defend it, **you** must:

- (a) accept as full and final discharge of all **our** liability under this policy (whether then known or unknown) payment to **you** of the amount **we** could have paid the claimant to settle the claim; and
- (b) any legal and associated costs for which **we** are already liable at that point.

Our Rights Following a Claim

In the event of a loss for which a claim is made, **we** and any person authorised by **us** may, for the purpose of investigation and/or settlement of the claim, without incurring any liability or changing any of **our** rights under this Policy:

- (a) enter, take, or keep possession of the **premises** where such loss has occurred;
- (b) take possession of, or require to be delivered to **us**, any **property insured** for which loss has been paid or agreed to be paid; and
- (c) deal with such property for all reasonable purposes and in any reasonable manner.

If **you** fail to cooperate with **us** or purposefully avoid or refuse to cooperate with **us** then **we** will have the right to deny payment of a claim.

No property may be abandoned to **us** regardless of whether taken possession of by **us** or not.

Other Insurances and Contribution

1. If at the time of a loss covered under this policy, there is another insurance policy or policies which also provide cover for that loss then the amount **we** will pay for that loss will be limited to its rateable proportion of such loss.

For example: if the first insurance covers GBP 10,000 for a claim and the second insurance covers GBP 20,000, the first insurer will be pay for 1/3 of the loss and the second will pay for 2/3 of the loss.

2. If the loss covered under another insurance policy is subject to a condition of average, but the loss under this policy is not, the same condition of average will be applied to this policy.
3. If the loss covered by another insurance policy is subject to an exclusion which limits or prohibits the other policy from contributing to the loss on the same terms as this policy, then, the most **we** will pay will be limited to a proportion of the loss. This proportion will be the percentage as the **limit of cover** compared to the total value of the property suffering the loss.

Subrogation

We are entitled to:

- (a) take the benefit of your rights against another person prior to or after we have paid a claim
- (b) take over the defence or settlement of a claim against you by another person
- (c) take steps as we deem necessary to prevent, mitigate or minimise a loss,
- (d) take over and conduct the defence or settlement of claims made against a person insured that is covered under this policy, and
- (e) pursue any rights or remedies available to you whether or not payment has been made.

CANCELLATION SECTION

Your Cancellation Rights

You can cancel the Policy at any time and may be due the following refunds:

- 1) If **you** cancel within the first 14 days after the later of the date **you** receive the Policy or the start of the **policy period**. If no claim has been made, **we** will provide a full refund of any premium **you** have paid. If a claim has been made, then the full annual premium is due.
- 2) If **you** cancel after the first 14 days as outlined in 1 above. If no claim has been made, **we** will provide a pro-rata refund of premium. This means **you** will only pay for the number of days **you** were covered. If a claim has been made, then the full annual premium is due.

Our Cancellation Rights

We can cancel the **policy** at any time by giving **you** 14 days' notice in writing.

We will only do this for a valid reason, for example:

- 1) If **you** fail to pay the premium within the agreed timescale
- 2) a change in risk which means that **we** can no longer provide **you** with insurance cover;
- 3) non-cooperation or failure to supply any information or documentation **we** request
- 4) threatening or abusive behaviour or the use of threatening or abusive language to one of **our** staff, agents or suppliers; or
- 5) the outcome of a survey requires **you** to carry out risk improvements and **you** refuse to carry out such improvements as required by **us**.

If this insurance is cancelled, **you** will be charged on a pro-rata basis. This means **you** will only pay for the number of days **you** were covered. For example, if **your policy period** is 12 months and **you** have been covered for six (6) months, the deduction for the time **you** have been covered will be half the annual premium.

If a claim has been made, then the full annual premium is due.

YOUR DUTIES

The conditions contained under this Section lists the responsibilities **you** must fulfil at all times during the **policy period** to reduce the risk of a claim.

If **you** fail to fulfil these responsibilities during the **policy period**, **we** will suspend the Policy for the time period in which **you** fail to comply with the condition. **We** will not pay **you** for a loss which occurs during the period when the Policy is suspended.

If **we** decline a claim during the period of suspension and **you** disagree with **our** position, **you** will be required to prove that the failure to comply with the condition, could not have increased the risk of the **damage** occurring in the circumstances in which it occurred.

1. Automatic Fire Alarm Installations

Applicable to Sections 1 and 2:

Where **you** are required by law to install and maintain automatic fire alarms, **you** must, throughout the **policy period**:

- (a) carry out the testing and checking requirements referred to on the completion certificate and remedy promptly any defect disclosed;
- (b) carry out the maintenance procedures specified by the manufacturers of the equipment;
- (c) notify **us** immediately of any disconnection or failure of the automatic fire alarm installation likely to leave any area unprotected for 12 hours or more;
- (d) record details of all events such as alarm faults, tests, maintenance, and disconnections and keep such details available for examination by **our** representatives.

2. Automatic Sprinkler Installations

Applicable to Sections 1 and 2:

Where **you** are required by law or where **you** have notified to **us** that **you** have installed and maintained automatic sprinkler system **you** must ensure that:

- (a) it is continuously operational, during the **policy period**;
- (b) it is regularly tested to ensure it is functioning in accordance with the manufacturer specifications;
- (c) **you** have a contract with approved installing engineers and that **you**:
 - (i) provide for the maintenance and half-yearly inspection of the automatic sprinkler installation system; and
 - (ii) obtain certification after each inspection that the system is in satisfactory working order;
- (d) the water levels are tested for the appropriate level;
- (e) **you** maintain a level of heating sufficient to prevent freezing of automatic sprinkler installations;
- (f) **you** remedy promptly any defect disclosed by any tests;

Provided that **you** will not be in breach of sub- clauses (a) or (b) of this duty if:

- (i) notice is given to **us** immediately the installation is rendered inoperative or in the event of an emergency; and
- (ii) **you** take all reasonable steps immediately to ensure the installation returns to full operation.

3. Fair Presentation

Duty of Fair Presentation

Before the start of the **policy period**, **you** must make a fair presentation of the risk. The duty of fair presentation is a duty on **you** to disclose in a clear and accessible way every material circumstance which **you** know or ought to know.

For the duty of fair presentation what **you** know or ought to know:

- includes the knowledge of senior management and whoever is responsible for this insurance; and
- is what should reasonably have been revealed by a reasonable search of information available.

Failing to Make a Fair Presentation

What may happen if **you** fail to make a fair presentation depends on whether the failure was deliberate or reckless or not.

If the failure was deliberate or reckless **we** will treat this Policy as if it never existed and **we** can keep any premium **you** have paid.

If the failure was not deliberate or reckless, the remedy available to **us** depends on what **we** would have done if **you** had given a fair presentation. The remedies are:

- (a) if **we** would not have entered into the Policy, **we** will treat this Policy as if it never existed and refuse all claims. **We** will return any premium **you** have paid.
- (b) if **we** would have entered into the Policy but on different terms (other than premium) **we** will treat the Policy as if it had been entered into on those different terms from the start of the **policy period**.
- (c) if **we** would have entered into the Policy but charged a higher premium, **we** will reduce proportionately the amount **we** pay for a claim.

Both (b) and (c) can apply at the same time.

We will write to **you** if **we**:

- intend to treat this Policy as if it never existed; or
- need to amend the terms of this Policy.

4. Fire Regulations

Applicable to Sections 1 and 2:

You must:

- (a) comply with all applicable legal obligations under Part 2 of The Regulatory Reform (Fire Safety) Order 2005, the Fire Safety (Scotland) Regulations 2006 or the Fire Safety Regulations (Northern Ireland) 2010, throughout the **policy period**;
- (b) ensure that:
 - (i) approved fire extinguishing appliances are on the Premises, throughout the **policy period**; and
 - (ii) an inspection of the appliances is carried out in accordance with your legal obligations.

However, cover under Sections 1 and 2, will not be invalidated by any defect in any of the said appliances due to circumstances unknown to, or beyond **your** control.

5. Observance of Terms

You must fulfil all terms, Conditions, and Endorsements, of this Policy in so far as they relate to anything to be done or complied with by **you**.

6. Programs and Data Precautions

You must

- (a) take all reasonable precautions to prevent accidental loss, distortion, corruption or erasure of **programs** and/or **data**;
- (b) in respect of **programs** where the terms of any licencing agreement allows **you** to do so, maintain a backup copy of the current version at a location other than **your premises** where the **media** on which the **programs** are recorded is kept;
- (c) In respect of **data** maintain a weekly full system backup of **data** at a location other than **your premises** where the **media** on which the data is recorded is kept.

7. Reasonable Precautions

1. **You** must at **your** own expense take all reasonable care to prevent accidents, loss, and **damage** and maintain the **premises**, vehicles, and anything else used in connection with the **business**, in proper repair.
2. **You** will make good or remedy any defect and danger which becomes apparent or take such additional precautions as the circumstance may require.

8. Reasonable Care

You, and **your employees** must take all reasonable steps, including but not limited to taking precautions to protect or remove the **property insured**, to avoid or diminish any loss or **damage** covered by this Policy and to secure compensation for any such loss or damage including action against other parties to enforce any rights and remedies or to obtain relief or indemnity.

9. Security Protections

Applicable to Sections 1 and 2:

Where **we** require **you** to fit an intruder alarm system **you** must ensure in respect of any intruder alarm installed at the **premises**:

- (a) it is properly maintained under a maintenance contract with an alarm company, during the **policy period**;
- (b) it is switched on and properly working whenever the **premises** are closed for business;
- (c) the alarm company is immediately advised of any apparent defect in the intruder alarm;
- (d) **we** are notified immediately and in writing if **you** receive written notification from a police authority warning of possible or intended withdrawal of response to calls from the intruder alarm;
- (e) **you** obtain **our** agreement in writing before replacing, extending, or otherwise altering the intruder alarm; and
- (f) whenever the **premises** are left unattended **you** will ensure that:
 - (i) all locks, bolts, and other protective devices are in full operation;
 - (ii) details of any codes and all keys used for the operation of the intruder alarm will be either removed from the **premises** or placed within a locked safe or strong room, the keys to which are themselves removed from the **premises**.

10. Survey Requirement and Risk Improvement

We reserve the right to carry out risk management surveys at **your premises**. This survey requirement will be subject to **your** prior knowledge, permission and cooperation. Such permission and cooperation will not be unreasonably withheld, and any risk improvement requirements are to be completed within the stated timescales by **you** if so required by us.

SECTION 1 – MATERIAL DAMAGE

What is Covered

We will cover **you** against **damage** to the **property insured**, that occurs during the **policy period**.

In the event of a claim, **we** may decide to, either:

- (a) pay to **you** the amount the affected **property insured** is valued at the time of the **damage** or
- (b) restore, **reinstate** or replace such affected **property insured**.

The maximum **amount we** will paying respect of each **occurrence** covered under this Section, after the application of any applicable **excess** will in no case exceed either:

- (i) the relevant **sub-limit**, or
- (ii) the **limit of cover**.

Definitions Applicable to Section 1

In this Section, wherever the following words appear in bold format, they will have the same meaning as defined here.

Debris Removal

Costs and expenses necessarily payable by **you** in:

- (a) debris removal;
- (b) dismantling and demolishing,
- (c) shoring up or propping, and
- (d) clearing of drains and sewers

of the portion(s) of the **property insured damaged** by any **defined peril**.

We will not pay for any costs or expenses:

- (i) for removing debris except from the site of such property **damaged** and the area immediately next to such site;
- (ii) arising from pollution or contamination of property not covered by this Section.

Declared Value

Your assessment of the cost of **reinstatement** of the **property insured** at the start of the **policy period**, ignoring inflationary factors and making the allowance for:

- (a) the additional cost of **reinstatement** to comply with Public Authority requirements;
- (b) **professional fees**; and
- (c) **debris removal** costs.

Sub-Limit

A limit which is less than the **limit of cover**. The **sub-limit** is a part of and not in addition to the **limit of cover** shown in the Schedule.

Tenants Improvements

Permanent improvements, alterations and decorations made to the **premises** by **you** and at **your** own expense and for which **you** are legally responsible. This does not include landlord's fixtures and fittings or other property.

Third Party Premises

Premises that are owned, tenanted, or occupied by a third party and that are not used or occupied by **you**.

Extensions Applicable to Section 1

1. Building Legislation or Regulation

Cover under this Section is extended to include additional costs for **reinstatement** which **you** need to pay in order to meet legal requirements under: any Act of Parliament, or Public Authority requirements in respect of the **damaged property** covered.

We will not provide cover under this Extension for:

- (a) **damage** occurring prior to the start date of this Policy;
- (b) any Act of Parliament, or Public Authority requirement which is not in force at the time of the **damage**;
- (c) **reinstatement** required as a result of any notice that has been served on **you** prior to the **damage** occurring;
- (d) **reinstatement** required as a result of an existing requirement which has to be implemented by **you** within a set time period;
- (e) any **property insured** that is entirely undamaged;
- (f) the additional cost required for the **reinstatement** of **property insured** to a standard that is not required under any Act of Parliament, or Public Authority requirement; or
- (g) the amount of any capital appreciation which may be payable in respect of the **property insured** to comply with any Act of Parliament, or Public Authority requirement;

You must comply with the following conditions in order for a claim to be paid under this Extension:

A. The work of **reinstatement** must be:

- (a) started and carried out without unreasonable delay, and
- (b) must be completed within 12 months after the **damage**, or
- (c) after the first 12 months but only we have agreed it with you in writing.

Such works may be carried out on another site if the Legislation or Regulations so require provided that this does not increase the amount **we** would be required to pay under this Extension.

B. If the amount **we** are required to pay for **property insured** under this Section is reduced by applying of any of the terms and conditions of this Section then the amount **we** will pay under this Extension will be proportionately reduced in the same way.

The most **we** will pay under this Extension, will not exceed:

- (a) in respect of the undamaged portions of partially **damaged property insured** but not including foundations, 15% of the cost of **reinstatement** that **we** would have paid if the **property insured** had been completely destroyed;
- (b) the amount **we** would have been required to pay to reinstate the property if the **property insured** had been completely destroyed; or
- (c) the **limit of cover** for **buildings** as shown in the Schedule in respect of **damaged property insured** at the **premises**.

2. Capital Additions

Cover under this Section is extended to include any newly acquired or newly erected **buildings, contents, computer equipment** and **entertainment equipment** including improvements and extensions.

Provided that:

- (a) the most **we** will pay under this Extension will not exceed 10% of the **declared value** for each item or GBP 500,000 whichever is the less of the two, in respect of **property insured** at any one **premises**;
- (b) **you** must provide to **us** any information that **we** reasonably require of any **buildings, contents, computer equipment, and entertainment equipment** within 60 days in order for them to be covered under this Extension;
- (c) following notification to **us** cover provided will apply from the date **your** liability commenced; ; and,
- (d) following you notifying **us** of any additional insurance the provisions of this Extension will be fully reinstated; and
- (e) the property is not otherwise covered anywhere in the **geographical limits**.

3. Changing Locks and Keys

Cover under this Section is extended to include costs payable as a result of the necessary replacement or reconfiguration of locks, keys, fobs and access cards following their loss by:

- (a) theft from the **premises** or from the homes of principals, directors, or **employees**, provided that the theft involves forcible entry into or exit from either;
- (b) theft from an **event location**;
- (c) theft following threat of actual assault or violence to **you** or **your employees**; and
- (d) by unauthorised duplication of keys, fobs or access cards.

However, if such keys, fobs or access cards relate to a safe or strong room, no payment will be made if they are left on the **premises** overnight.

The most **we** will pay under this Extension, in respect of any one **occurrence**, and in the aggregate for the **policy period** will be GBP 25,000.

4. Claims Preparation Costs

Cover under this Section is extended to include the reasonable costs payable and evidenced by **you** in respect of fees paid to **your**:

- (a) architects,
- (b) engineers, or
- (c) other professionals but excluding professional accountants,

for producing and certifying the details of evidence required by **us** in respect of **damage** or the resulting **business interruption**, for which **we** have agreed to cover.

Provided that:

- (a) **we** will have the right to review and audit all documentation relating to such costs and expenses;
- (b) **we** will not pay for:
 - (i) the fees and costs of legal advisors or loss assessors, including any of their subsidiary, related or associated entities;
 - (ii) the fees and costs of any consultants who provide consultation on coverage or negotiate claims;
 - (iii) any additional costs and expenses payable by any of **your employees** and the cost of materials used in meeting **our** requirements;
 - (iv) costs expenses and charges that are not otherwise recoverable under this Section or the Policy
 - (v) GBP 500 **excess** in respect of each and every claim.

The most **we** will pay under this Extension for both, the Material Damage Section and the Business Interruption Section, combined, is GBP 25,000 in respect of any one **occurrence**.

5. Clearing of Drains

Cover under this Section is extended to include costs and expenses payable by **you** in respect of:

- (a) drains,
- (b) gutters, and
- (c) sewers,

which are required to be cleared, cleaned or repaired, as a result of **damage** to **property insured**.

We will not pay for any costs or expenses:

- (i) required in the clearing, cleaning or repairing other than from the site of the **damage** and the area immediately next to such site; or
- (ii) arising from pollution or contamination of the **property insured** not covered by this Section.

6. Consulting Engineers' Fees / Repair Investigation Costs

Cover under this Section is extended to include the fees and costs payable, with **our** prior written consent, for the investigation or test into the possible:

- (a) repair,
- (b) **reinstatement** whether or not it is successful, or
- (c) replacement,

of **computer equipment** or parts of **computer equipment damaged**.

However, **we** will not pay for any costs required for preparing any claim.

The most **we** will pay under this Extension, in respect of any one **occurrence**, will not exceed GBP 10,000

7. Computer Equipment Breakdown or Derangement

Cover under this Section is extended to include **damage** to **computer equipment** due to its own breakdown or derangement. However, cover under this extension will only be provided when such **computer equipment** is, at the time of the **damage**, the subject of a maintenance rental hire or lease agreement which provides a minimum service of on-call remedial and/or corrective maintenance at inclusive cost.

The most **we** will pay under this Extension, in respect of any one **occurrence**, is GBP 2,500.

8. Continuing Interest and Hire Charges

Cover under this Section is extended to include the cost reasonably incurred for interest charges or continuing hire charges not recoverable under the terms of a lease or similar agreement:

- (a) as a result of **damage** at the **premises**; and
- (b) for which **you** are responsible

The most **we** will pay under this Extension, in respect of any one **occurrence**, is GBP 10,000.

9. Contracting Purchaser's Interest

if at the time of **damage** **you** have contracted to sell **your** interest in any **building** covered under this Section, and the purchase has not been but is subsequently completed, the purchasers, on completion of the purchase, will be entitled to benefit under this Section until completion, to the extent that such **building** is not otherwise covered by the purchaser or on their behalf.

10. Contract Works

Cover under this Section is extended to include where **you** have entered into a contract(s) for the extension, alteration or refurbishment of any existing **building** owned by **you**.

For the purposes of this Extension, the Schedule item for **buildings** is extended to include the **works** to the extent required by contract conditions entered into between **you** and the contractor.

We will not cover **you** under this Extension:

- (a) in respect of any contract where the total contract price that exceeds GBP 250,000;
- (b) in respect of the amount of GBP 1,000 **excess**.

For the purposes of this Extension, **works** will mean:

- (i) temporary or permanent works for the extension, alteration or refurbishment of the **buildings**, completed or to be completed as part of any contract by or on **your** behalf at the **building**;
- (ii) materials, including fixed and unfixed materials on site, for incorporation, whilst on or adjacent to the contract site and in transit to or from the contract site other than by sea or air.

11. Costs of Alternative Hire

Cover under this Section is extended to include the costs of hire charges payable by **you** as a result of **damage** during the **policy period**:

- (a) for the necessary hire of a substitute item of a similar type and capacity during the period of repair; or
- (b) the permanent replacement of the **entertainment equipment**

The most **we** will pay under this Extension, in respect of any one **occurrence**, is GBP 150,000.

12. Data Processing and Ancillary Equipment

Cover under this Section is extended to include **damage** to data processing and **ancillary equipment** caused by dryness or dampness of atmosphere, extremes of temperature, corrosion or rust, if directly resulting from **damage** to any air conditioning facilities.

13. Debris Removal

Cover under this Section is extended to include the cost of **debris removal** from the **premises** directly caused by **damage**.

We will not cover **you** under this Extension for the cost:

- (a) of decontamination or the removal of
 - (i) contaminated uninsured property; or
 - (ii) the contaminant in or on property, including but not limited to the presence of **pollutants** or hazardous material, regardless of whether or not such contamination results from covered **damage**; or
- (b) the removal of debris from any site other than the site on which the **damaged property insured** is located and immediately next to the site; or
- (c) arising from pollution or contamination.

14. Electrical Apparatus

Cover under this Section is extended to include any electrical apparatus or fittings which are **damaged** by fire due to:

- (a) self-ignition,
- (b) over-running,
- (c) excessive pressure,
- (d) short circuiting,
- (e) self-heating, or
- (f) leakage of electricity.

We will not cover **you** under this Extension for **damage** to the particular piece of apparatus or fitting which has caused the fire, but **we** will pay for **damage** to any other apparatus or fittings as a consequence of such fire.

15. Entertainment Equipment - Hired-In Continuing Hire Charges

Cover under this Section is extended to include **your** legal liability to pay continuing hire charges whilst **entertainment equipment** hired is out of commission following **damage** to such **entertainment equipment** hired during the **policy period**

Provided that a valid claim for **damage** to such **entertainment equipment** hired is otherwise payable under this Section

The most **we** will pay under this Extension, in respect of any one **occurrence**, is GBP 150,000 or 13 weeks continuing hire charges, whichever is the less.

16. Energy Performance Additional Costs

Cover under this Section is extended to include the additional costs necessarily and reasonably incurred, with **our** prior consent, in rebuilding or repairing **buildings** at the **premises** in a manner that aims to reduce potential harm to the environment by improving energy efficiency following **damage** as covered by this Section.

We will not cover you under this Extension in respect of:

- (a) the additional cost of complying with any European Union Legislation, Act of Parliament, or
- (b) byelaws of any public authority
- (c) for any additional costs for work that had already planned to be carried out prior to the **damage**
- (d) for any **buildings** or portions of **buildings** which are **unoccupied**
- (e) if **you** elect not to rebuild or repair the **buildings**

The most **we** will pay under this Extension, in respect of any one **occurrence**, will not exceed GBP 35,000.

17. Escape of Fuel, Oil or Effluent waste

Cover under this Section extends to include, the costs and expenses necessarily and reasonably incurred in cleaning, clearing or removing debris from land:

- (a) at the **premises**, and
- (b) the area immediately adjacent to it

as a result of **damage** to **property insured**, resulting in the escape of fuel, oil, or effluent waste from any tank owned by **you**.

The most **we** will pay under this Extension, in respect of any one **occurrence**, will not exceed GBP 10,000.

18. Fire Brigade

Cover under this Section is extended to include the reasonable costs charged by any Public Authority relating to the extinguishing or fighting of fire.

19. Fire Extinguishers, Sprinklers, and Security Equipment

Cover under this Section is extended to include:

- (a) the cost of replacing or replenishing extinguishment materials and gas flooding systems;
- (b) the cost of extinguishment expenses for which **you** may be assessed;
- (c) replacing sprinkler heads in automatic sprinkler installations rendered necessary; and
- (d) the cost of resetting fire and/or intruder alarms, and closed circuit television and/or satellite network equipment

during or following **damage** to **property insured** caused by fire at the **premises**.

The most **we** will pay under this Extension, in respect of any one **occurrence**, is GBP 25,000.

20. Foundations

1. Cover under this Section is extended to include within the **declared value** for **buildings** the amount in respect of foundations.
2. If following **damage** rebuilding is carried out on another site, **we** agree to treat abandoned foundations as **damaged**, whether or not such foundations are **damaged**.
3. Where abandoned foundations increase the resale value of the original building site, the increased value shall be regarded as salvage.

21. Freeholders, Lessors and Mortgagees

1. Cover under this Section is extended to include the interest of any Freeholder, Lessee, Under Lessee and/or Mortgagee in respect of **buildings** covered under this Section provided that such interest attached before any **damage** to such **buildings** occurs.
2. Such parties will be automatically noted in this insurance if requested by **you**, but only to the extent that such interest is not otherwise covered and subject to their identity being disclosed in writing to **us** by **you** in the event of **damage**.
3. This Policy will not be invalidated by any increase in the risk of **damage** resulting from an alteration, act or omission which occurs without the authority or knowledge of any Freeholder and/or Lessor and/or Mortgagee. However, this will only protect the interest of such Freeholder, Lessor or Mortgagee and will only apply if **we** are notified immediately on the party becoming aware of the increased risk and the payment of any reasonable additional premium is made.

22. Further Investigation Expenses

Cover under this Section is extended to include where any **buildings** have suffered **damage** and in the opinion of a competent construction professional there is a reasonable possibility of other **damage** to portions of the same **buildings** which is not immediately apparent. **We** will pay the reasonable costs incurred by **you** with **our** prior consent in establishing whether or not such other **damage** has occurred.

We will also pay the reasonable costs payable by **you** in establishing whether or not other covered buildings in the immediate vicinity for which **you** are responsible have suffered **damage** in the same incident, but only if such **buildings** are subsequently found to have suffered such **damage** for which **you** are covered under this Section

The most **we** will pay under this Extension, in respect of any one **occurrence**, is GBP 5,000.

23. General Interests

Cover under this Section is extended to include the interest of any other party if requested by **you** in any of the **property insured**, provided that such interest attaches before any **damage** to such **property insured**.

However, this is only to the extent that:

- (a) such interest is not otherwise covered elsewhere; and
- (b) subject to their identity being disclosed in writing to **us** by **you** in the event of **damage**.

24. Glass and Neon/Illuminated Signs

Cover under this Section is extended to include **damage** to fixed glass, glass shelves, showcases and counter cases, mirrors and neon/ illuminated signs.

In addition, following **damage** to glass or neon/illuminated signs, **we** will pay the cost of:

- (a) any necessary boarding-up or temporary glazing pending full replacement;
- (b) replacing alarm foil, lettering, painting, embossing, silvering or other ornamental work on glass;
- (c) **damage to contents or stock** caused by broken glass; and
- (d) removing and re-fixing window fittings and other obstacles to replacing broken glass.

Provided that, **we** will not pay for **damage** in respect of neon and illuminated signs:

- (i) arising from adjustment, repair, dismantling or erection of any part of the sign or whilst such sign is removed from its normal working position;
- (ii) arising from mechanical breakdown of the sign or any part of the sign;
- (iii) to any part of the sign by its own ignition, electrical breakdown or burn out of tubes unless the glass is fractured; or
- (iv) **damage** which occurred before the start date of this Policy.

25. Inadvertent Omissions

Cover under this Section is extended to include **property insured** which **you** had intended to cover within the **geographical limit**, which has been inadvertently omitted. **We** will agree for it to be covered within the terms of this Section, as from the start date of the **policy period** or from the date of **your** interest in such property, if erected or purchased after the start date of the **policy period**.

Provided that:

- (a) There are no claims or circumstances likely to give rise to a claim known by **you** or on **your** behalf with respect to property inadvertently omitted prior to the date of its inclusion into the Policy;
- (b) **you** carry out at not less than 12 monthly intervals a check to ensure that effective insurance is in force for all property owned or leased by **you** or for which **you** are responsible;
- (c) **you** will give details in writing immediately when an omission is discovered and within 30 days of the date of discovery must provide **us** the **declared value** to apply for any such property, and effect specific cover retrospective to such date, and pay the appropriate additional premium; and
- (d) **we** reserve the right to exercise **our** right to the remedies under Section 8 and Schedule 1 of the Insurance Act 2015 in respect of non-disclosure that is neither deliberate or reckless.

For the purpose of the Average Condition, the **sub-limit** under this Extension will be added to the combined total of the sum of the **declared value** for **buildings** and **content** and the **limit of cover** for all other **property insured**.

The cover under this Extension will not apply to **property insured** situated outside the **geographical limits**.

The most **we** will pay under this Extension, in respect of any one **occurrence**, is GBP 500,000 any one **premises**.

26. Landscaped Grounds

Cover under this Section is extended to include costs payable by **you** as a consequence of **damage** to **property insured** at the **premises**, in restoring landscape grounds to their original appearance when first laid out and planted,

We will not cover **you** under this Extension for costs arising due to the failure of trees, plants, turf and the like to germinate or become established.

The most **we** will pay under this Extension, in respect of any one **occurrence**, is GBP 25,000.

27. Loss Reduction Costs

Cover under this Section is extended to include costs payable by **you** in taking necessary measures to avoid or mitigate further **damage** covered by this Section.

Provided that:

- (a) costs are directly related to **damage** which is likely to occur in the immediate future unless urgent preventative action is taken;
- (b) **we** are satisfied that **damage** has been avoided or reduced in consequence of the measures taken;
- (c) the terms exclusions and conditions of this section will apply as if **damage** had occurred; and
- (d) such costs are not more specifically covered under this or any other policy, bond, indemnity, security or other legally binding contract.

The most **we** will pay under this Extension, in respect of any one **occurrence**, will not exceed GBP 25,000.

28. Marine General Average

When the **geographical limits** are shown in the Schedule as Europe or Worldwide, this Policy will cover **you** for General Average Contributions and Salvage Charges whilst the **property insured** is being transported by sea between any countries within the **geographical limits**, provided that the **property insured** is not more extensively covered elsewhere.

The most **we** will pay under this Extension, in respect of any one **occurrence**, the most **we** will pay is the **limit of cover** in respect of **entertainment equipment** as shown in the Schedule.

29. Metered Utilities

Cover under this Section is extended to include the additional charges payable by **you** in respect of loss of metered water, gas or oil resulting from its accidental escape from pipes, apparatus, or tanks directly caused by the **damage** covered under this Section, occurring during the **policy period**.

Provided that **you** maintain a record of readings from the Water Authority meter at intervals of not more than 7 days.

The most **we** will pay under this Extension, in respect of any one **occurrence**, is GBP 25,000.

30. Motor Vehicles

Cover under this Section is extended to include **damage** to motor vehicles owned or leased by **you** whilst parked at the **premises** provided that the vehicles are not covered under a more specific insurance.

31. New Acquisitions

Cover under this Section is extended to include any new premises or premises of new subsidiary company(ies) acquired by **you**, within the **geographical limits** and as shown in the Schedule.

Provided that:

- (a) the activities carried out at the new premises or by the new subsidiary company fall within the **business** shown in the Schedule;
- (b) full details of the acquisition are provided to **us** as soon as practicable and within 60 days from the date of acquisition and insurance is effected;
- (c) **we** will be entitled to charge an appropriate pro rata additional premium from the date of acquisition and may vary the terms in respect of such acquisition;
- (d) no claim will be payable if such subsidiary company or premises within the acquisition is covered by a more specific policy or policies except in respect of any excess beyond the amount which would have been payable under such other policy or policies had this insurance not been effected.

However, any new premises or premises of new subsidiary company(ies) within the acquisition, outside of the **geographical limits** shown in the Schedule, will only be covered under this Policy on prior written confirmation from **us**.

The most **we** will pay under this Extension, will not exceed 10% of the **declared value** for each item or GBP 1,000,000 in total whichever is the lesser.

32. Pairs and Sets

Cover under this Section is extended to include the reasonable and necessary costs for **property insured** comprising of a pair or set for:

- (a) repairing or replacing any part to restore the pair or set, or
- (b) the difference between the value of the pair or set before and after it was **damaged**.

Where **we** have paid for the difference in value of a pair or set before and after it is **damaged** then **you** will surrender the undamaged parts to **us**.

33. Professional Fees

Cover under this Section is extended to include the reasonable and necessary cost of **professional fees** as a consequence of **damage** to **property insured** which results in **reinstatement** or repair in respect of **damage** covered under this Section.

34. Property Stored

Cover under this Section is extended to include **damage** to **stock** anywhere within the **geographical limits** other than the **premises**.

Provided that we will not provide cover for:

- (a) property more specifically or otherwise covered under another policy;
- (b) **damage** to property in any yard, car park, or open space or contained within an open-sided structure or open-sided building; or
- (c) **damage** caused other than by a **defined peril**.

The most **we** will pay under this Extension, in respect of any one **occurrence**, will not exceed 10% of the **declared value** of stock or GBP 250,000 whichever is the less.

35. Reinstatement of Data

Cover under this Section is extended to include **damage** covered under this Section which directly causes the loss distortion corruption or erasure of **data** recorded on **media**. **We** will pay the costs necessarily and reasonably incurred by **you** in the **reinstatement** of **data** but excluding the value to **you** of the **data**.

The most **we** will pay under this Extension, in respect of any one **occurrence**, is GBP 25,000.

36. Reinstatement to Match - Computer Equipment

Cover under this Section extends to include:

- (a) the cost of replacement or modification of undamaged **computer equipment** as is necessary to adapt it to operate in conjunction with lost, destroyed, or damaged **property** which has been replaced prepared or restored;
- (b) the cost of replacement, repair, or modification of undamaged parts of **computer equipment** that form parts of a matching set of articles or suite of common design or function where the damage is restricted to a clearly identifiable area or to a specific part.

provided that:

- (a) the cover provided under this Extension will not be increased by:
 - (i) what would otherwise have been payable for the replacement, repair, and restoration of the property lost destroyed or damaged in its original form;
 - (ii) what would have been payable for replacement, repair, or modification of the whole property forming a set of articles or suite of common design or function if such property had been wholly destroyed
- (b) **we** will only provide cover for the amount required to enable **you** to resume operations in substantially the same manner as before the **damage**;
- (c) where the **property** is lost destroyed or damaged in part only, **we** will not pay more than the amount representing the cost which we would have paid for repair restoration or replacement if such property had been wholly destroyed;
- (d) if **damage** to **computer equipment** results in undamaged computer records being incompatible with replacement computer equipment **we** will pay for the cost of:
 - (i) modifying the **computer equipment**; or
 - (ii) replacing the computer records with reinstatement of programmes and or information but not for the value of the information to **you**
 whichever is the less.

37. Reinstatement of Programs

Cover under this Section is extended to include **damage** covered under this Section, which directly causes the accidental loss distortion corruption or erasure of **programs** recorded on **media** covered by this Section. **We** will pay the reasonable costs payable for the **reinstatement** of **programs**.

However, **we** will not cover **you** under this Extension the cost of **reinstatement** of **data** or the value to **you** of the **data** contained.

The most **we** will pay under this Extension, in respect of any one **occurrence**, will not exceed GBP 25,000.

38. Rent Payable

Cover under this Section is extended to include the **rent payable** by **you**, in respect of the **building(s)** or any part of it being unfit for occupation as a result of **damage**.

We will not pay for more than the proportion of the **limit of cover** for **rent payable** as the period necessary for **reinstatement** bears to the term of rent covered.

The most we will pay under this Extension, in respect of any one **occurrence**, will not exceed the amount shown in the Schedule.

39. Removal to Private Home - Contents

Cover under this Section is extended to include **contents** whilst removed to any director's, partner's or **employee's** residential address elsewhere than at the **premises**, including whilst in transit, and within the **geographical limits**

Provided that **we will** not provide cover under this Extension for

- (a) **portable computer equipment**; or
- (b) directors', partners' and **employees'** personal effects.

The most **we** will pay under this Extension, in respect of any one **occurrence**, is GBP 10,000 of the **limit of cover** at the home of any one person or GBP 3,000 in respect of any one item.

40. Services

Cover under this Section is extended to include telephone, gas, water and electric instruments, meters, piping, cabling and the like and their accessories, including similar property in adjoining yards or roadways or underground, all pertaining to **buildings** or **contents** covered by this Section, being **your** property or for which **you** are responsible.

41. Sprinkler Installation Upgrading Costs

Cover under this Section is extended to include the cost of upgrading any automatic sprinkler installation following **damage** covered under this Section in order to ensure that it conforms to Loss Prevention Council Rules for Automatic Sprinkler Installations in place at the time of reinstatement.

We will cover costs incurred by **you** provided that at the time of the **damage** the installation conformed to the 28th or 29th Edition of such Rules when installed but did not conform to subsequent amendment to such Rules.

We will not cover **you** under this Extension for any rate, tax, duty development or other charge or assessment arising out of capital appreciation as a result of complying with **our** requirements.

The most **we** will pay under this Extension, in respect of each and every **occurrence** will not exceed 20% of the **limit of cover** for the item including such sprinkler installation or any other **limit of cover** applicable to this section whichever is the less.

42. Temporary Removal

Cover under this Section is extended to include **property insured**, other than **stock**, whilst temporarily removed for cleaning, renovation, repair, or other similar purposes to another part of the **premises**, or to any other premises within the **geographical limits** including whilst in **transit**.

We will not cover **you** under this Extension for:

- (a) motor vehicles and motor chassis licensed for normal road use;
- (b) property held by **you** in trust; or
- (c) **property** more specifically covered.

The most **we** will pay in respect of each **occurrence** for each Item will not exceed 10% of the relevant **limit of cover**.

43. Temporary Removal (Documents)

Cover under this Section is extended to include:

- (a) deeds and other documents, including stamps adhered to them;
- (b) manuscripts, plans, and writings of every description;
- (c) books, written and printed, and
- (d) computer systems records;

whilst temporarily removed to any premises not occupied by **you** within the **geographical limits** and whilst in **transit**.

The most **we** will pay under this Extension, in respect of any one **occurrence** is 10% of the **limit of cover** for **contents** as shown in the Schedule.

44. Theft Damage to Buildings

Cover under this Section is extended to include **damage** directly caused to any **buildings** leased or rented to **you** including the landlord's fixtures and fittings, where the **damage** has been directly caused by theft, or attempted theft, or involving entry to, or exit from, the **premises** by violent and forcible means.

We will not cover **you** under this Extension in respect of **damage**:

- (a) caused to any property other than **buildings** and landlords' fixtures and fittings;
- (b) caused by any person lawfully on the **premises**;
- (c) while the **premises** are **unoccupied**;
- (d) to property more specifically covered under this policy or elsewhere; or
- (e) the first GBP 500 **excess** or the amount of **excess** shown in the Schedule whichever is the greater.

45. Trace and Access

Cover under this Section is extended to include costs necessarily incurred as a result of **damage** in locating the source of any escape of:

- (a) water from any fixed water services or heating installation; and
- (b) fuel oil used for domestic purpose only;

including making good the **damage** to the premises caused as a consequence

The most **we** will pay under this Extension, in respect of any one **occurrence**, is GBP 25,000.

46. Undamaged Stock

Cover under this Section is extended to include any loss payable less the amount of any salvage monies obtained in the event of undamaged **stock** being rendered unusable directly caused by **damage**.

The most **we** will pay under this Extension, in respect of any one **occurrence**, will not exceed 15% of the **limit of cover** for **stock**.

47. Unauthorised Use of Supplies

Cover under this Section is extended to include water, gas, electricity, oil or other metered supply charges payable by **you** and for which **you** are legally responsible, due to unauthorised use by persons taking possession of, keeping possession of or occupying any **premises** without **your** written consent,

Provided that:

- (a) **you** will take all practicable steps to terminate such unauthorised use as soon as it is discovered;
- (b) **you** have advised **us** of such unauthorised use immediately on becoming aware of it; and
- (c) Section Condition 14 Unoccupied Buildings has been complied with by **you**

The most **we** will pay under this Extension, in respect of any one **occurrence**, is GBP 25,000 any one **policy period**

48. Undamaged Tenants Improvements

Cover under this Section is extended to include where there is **damage** by a **defined peril** to **buildings** or **contents**, in consequence of which **your** lease is terminated by the lessor pursuant to a valid condition of **your** lease, **we** will pay the value of undamaged tenants fixtures, fittings, alterations, installations or additions made at **your** expense and which cannot legally be removed, in or on a building occupied but not owned by **you**.

Provided that **we** will not provide cover under this Extension for retaining walls, foundations or supports below the surface of the lowest floor or basement, or for outdoor trees, shrubs, plants or lawns

The most **we** will pay under this Extension, in respect of any one **occurrence**, is GBP 100,000.

Exclusions Applicable to Section 1

The following exclusions apply to this Section, in addition to the General Exclusions of this Policy.

1. Building Cracking or Collapse

We will not cover **you** against any loss consisting of or connected with **damage** to a **building** or a structure caused by its own collapse or cracking unless directly caused by a **defined peril**.

2. Cessation of Work

We will not cover **you** under this Section against any loss consisting of or connected with cessation of work.

3. Consequential Loss

Other than in respect of **rent payable** we will not cover **you** under this Section against consequential loss arising as a result of **damage**.

4. Corrosion, Rot, Damp

We will not cover **you** under this Section against any loss consisting of or connected with:

- (a) corrosion, rust, wet or dry rot, shrinkage, evaporation, loss of weight, dampness, dryness, marring, scratching, vermin, or insects;
- (b) aridity, humidity; rising damp, exposure to extremes of temperature, to moisture, light or heat; or
- (c) change in temperature, colour, flavour, texture, or finish.

but this will not exclude

- (i) loss or **damage** which is the result of **damage** which is covered under this Policy; or
- (ii) loss or **damage** which results from a **defined peril**.

5. Heat

We will not cover **you** against any loss consisting of or connected with the **property insured** undergoing:

- (a) any heating process; or
- (b) any process of production, packing, treatment, testing, commissioning, servicing, or repair involving the application of heat

but this will not exclude loss or **damage** which is the result of **damage** which is covered under this Policy.

6. Inherent vice, Defective Workmanship, Operation of Machinery, Explosion

We will not cover **you** under this Section in respect of any loss consisting of or connected with:

- (a) inherent vice, latent defect, gradual deterioration, wear and tear, frost, its own faulty or defective design or materials;
- (b) faulty or defective workmanship, or operational error or omission by **your** or any of **your employees**;
- (c) the operation of machinery, plant, apparatus or equipment unless such operation is in accordance with the manufacturer's instructions or specification;
- (d) explosion occasioned by the bursting of a boiler (not being a boiler used for domestic purposes only) economiser or other vessel, machine or apparatus in which the internal pressure is due to steam only and belonging to or under **your** control.

but this will not exclude loss or **damage** which is the result of **damage** which is covered under this Policy.

7. Leaks, Breakdown and Utilities

We will not cover **you** under this Section against any loss consisting of or connected with:

- (a) joint leakage, failure of welds, cracking, fracturing, collapse, or overheating of boilers, economisers, superheated pressure vessels, or any range of steam and feed piping used in connection to these;
- (b) mechanical or electrical breakdown or derangement in respect of the particular machine, apparatus, or equipment in which such breakdown or derangement originates;
- (c) the deliberate act of a supply undertaking in withholding the supply of water, gas, electricity, fuel, or telecommunications services;

but this will not exclude

- (i) loss or **damage** which is the result of **damage** which is covered under this Policy; or
- (ii) loss or **damage** which results from a **defined peril**.

8. Pollution

We will not cover **you** under this Section against any loss consisting of or connected with pollution or contamination, but this exclusion will not apply to **damage to property insured** directly caused by:

- (a) pollution, or contamination directly caused by a **defined peril**; or
- (b) **defined peril** resulting from pollution or contamination.

9. Property Insured away from the Premises

We will not cover **you** under this Section against **damage to property insured** away from the **premises** consisting of or connected with theft or attempted theft of the **property insured**:

- (a) from or on an unattended vehicle or trailer during **working hours** unless:
 - (i) all doors, windows and other means of access have been secured and locked;
 - (ii) any alarms are activated; and
 - (iii) any **property insured** must be placed in the boot or similar luggage compartment of the vehicle to conceal it from sight and which is securely closed and locked;
- (b) from or on an unattended vehicle or trailer out of **working hours** unless:
 - (i) all doors, windows and other means of access have been secured and locked;
 - (ii) any alarms are activated;
 - (iii) any property insured must be placed in the boot or similar luggage compartment of the vehicle to conceal it from sight, and which is securely closed and locked; and
 - (iv) such vehicle or trailer is garaged in a securely closed and locked building or compound;
- (c) from or on an unattended soft topped open topped or open sided vehicle or trailer unless also involving theft of the vehicle or trailer;
- (d) where **property insured** is otherwise left unattended meaning it is not under your care, custody or control unless contained in a locked building of substantial construction or in a secure locked room;
- (e) in or on soft topped, open topped or open sided vehicles or trailers if caused by:
 - (i) storm, tempest, water, hail, frost or snow;
 - (ii) malicious persons when the vehicle or trailer is left unattended out of **working hours**.

This exclusion will not apply to **entertainment equipment** away from the **premises** whilst in transit and at an **event location**.

10. Property not covered

We will not cover **you** under this Section against any loss in respect of:

- (a) glass other than fixed glass, china, earthenware, marble, or other fragile or brittle objects;
- (b) jewellery, precious stones, precious metals, bullion, furs, curiosities, works of art, or rare books;

other than loss directly caused by a **defined peril**.

- (c) land, land values, roads, pavements, piers, jetties, bridges, culverts, shafts, mines or excavations;
- (d) animals, growing crops, or trees;
- (e) bullion, foreign coins, counterfeit or substitute money;
- (f) explosives;
- (g) electricity, gas, water or telecommunication transmission lines or pipes except for such lines or pipes which **you** are responsible for or which are located on, under or over the **premises**.

11. Subsidence

We will not cover **you** under this Section against any loss consisting of or connected with subsidence or ground heave or landslide:

- (a) of yards, car-parks, roads, pavements, walls, swimming pools, hot tubs, tennis courts, drives, patios and terraces, gates and fences unless a **building** at the **premises** covered is also **damaged**; or
- (b) of solid floors of a **building** at the **premises** unless the walls of the **building** is also **damaged** by the same occurrence of subsidence or ground heave or landslide;
- (c) caused by or consisting of:
 - (i) the normal settlement or bedding down of new structures;
 - (ii) the settlement or movement of made-up ground;
 - (iii) coastal or river erosion;
 - (iv) defective design or workmanship or the use of defective materials;
 - (v) compaction of infill;
 - (vi) demolition, construction, structural alteration or repair of any property at the **premises**;
 - (vii) groundworks or excavation at the **premises**; or
 - (viii) fire, subterranean fire, explosion, earthquake or the escape of water from any tank, apparatus or pipe;
- (d) where **damage** originated prior to the start of this Policy.

12. Theft

We will not cover **you** under this Section against any loss caused directly by or consisting of theft or any attempted theft by or in collusion with any **employee** or any other person lawfully on the **premises**, or at an **event location**.

13. Unexplained disappearances

We will not cover **you** any loss, directly or indirectly, consisting of or connected with unexplained disappearance, unexplained or inventory shortage, misfiling or misplacing of information.

14. Unoccupied Buildings

We will not cover **you** under this Section against any loss consisting of or connected with:

- (a) freezing;
- (b) escape of water from any tank, apparatus or pipe;
- (c) malicious persons, not acting on behalf of, or in connection with, any political organisation, other than fire or explosion;
- (d) theft or attempted theft;

in respect of any **building** which is **unoccupied**.

15. Water Table

We will not cover **you** under this Section against any loss solely due to change in the water table level.

Conditions Applicable to Section 1

1. Basis of Settlement – Property Insured

In the event of damage covered under this Section, **we** will calculate the amount **we** will pay for any claim, based on the value of **reinstatement** of the **property insured** lost, destroyed or **damaged**, subject to the following conditions:

- (a) where the **property insured** is destroyed
 - (i) in case of a building(s), the cost of rebuilding of the building;
 - (ii) in the case of other property, cost of replacement with property of similar kind and quality;
- (b) where the **property insured** is **damaged**, the cost of repair or restoration of the damaged property or part of the property.

However, the **limits of cover** will be limited to 115% of the **declared values** or such other percentage as may be shown in the Schedule and the maximum **we** will pay in respect of each separate Item subject to this clause, is as shown in the Schedule.

- (c) the repair, rebuilding or replacement should be to a condition and quality equal to but not better or more extensive than its condition when new, provided that the **buildings** are maintained in good repair. However, **we** will not pay more than it would have done if the property had been completely destroyed;
- (d) the **property insured** may be replaced on another site and in a manner suitable to **your** needs, but this will not increase the maximum amount **we** will pay under the **limit of cover**;
- (e) the Basis of Settlement in respect of **buildings** extends to include the reasonable additional costs incurred in replacement of **damaged** materials which given consideration to the scientific and technical knowledge at the time of installation construction or fitting were reasonably deemed to be fit for the purpose intended but require replacement with more suitable modern materials after the **damage**;
- (f) the **buildings** will not be regarded as being better or more extensive than when new provided that the most **we** will pay in respect of any one claim is limited to 10% of the **declared value** of such **buildings** in respect of such additional costs;
- (g) all work must begin and be carried out as quickly as possible;
- (h) all claims will be settled without deduction in respect of any increases in the **declared value** at risk between the start date of the Policy and the time of the damage, provided that:
 - (i) **you** provide **us** with the **declared value** at the start of the **policy period** and a revised declared value, at each renewal; and
 - (ii) the **declared value** at the inception of this Policy is not less than the cost of **reinstatement** at inception;
- (i) if **you** fail to notify **us** of the **declared value** at the start of any **policy period**, **we** will use the last **declared value** notified by **you** for the following **policy period**;
- (j) if at the time of the **damage**, the **declared value** is less than the cost of **reinstatement** of the **property insured** as at the start of the **policy period**, the most **we** will pay for any **damage** will be limited to that proportion which the **declared value** bears to the cost of **reinstatement** of the **property insured**.

We will not make a payment under this clause;

- (i) until **you** have incurred the cost of replacing or repairing the property;
- (ii) if **you** or **your** agent has covered the property under another policy which does not have the same basis of reinstatement;
- (iii) if **you** do not comply with any of the provisions of this clause.

2. Basis of Settlement- Computer Equipment

If **computer equipment** and **ancillary equipment** cannot be:

- (a) economically repaired, or
- (b) replaced,

by similar equipment of similar capacity in a condition equal to but not better or more extensive than its condition when new because equipment of a similar capacity is not available, replacement can be of the next higher capacity.

This will not be regarded as being better or more extensive than new.

However, the above will not apply to any electronic **data** or processing **media**. If electronic **data** or processing **media** suffer loss or **damage** covered by this Policy then the basis of valuation will be:

- (a) the cost of the blank **media**, plus
- (b) the cost of copying the electronic **data** from back-up or from originals of a previous generation.

These costs will not include research and engineering nor any costs of recreating, gathering, or assembling such electronic data. If the **media** is not repaired, replaced, or restored, the basis of valuation will be the cost of the blank media. However, this Policy does not cover the value of the electronic **data** to **you** or any other party, even if the electronic **data** cannot be recreated gathered or assembled.

3. Basis of Settlement - Stock

The basis of settlement in respect of stock will be calculated as follows:

- (a) material in trade, supplies, and other merchandise not manufactured by **you** will be the replacement cost;
- (b) **stock** which forms part of work in progress will be the value of raw materials and labour plus the appropriate proportion of overhead charges;
- (c) finished **stock** will be the regular cash selling price less all discounts and charges to which such finished **stock** would have been subject had no loss occurred.

4. Branded Goods

In the event of a claim for loss or **damage** to the **property insured**, any salvage of branded goods, and/or merchandise either in **your** possession or held in trust or on commission, and/or goods sold but not delivered will not be disposed of by sale without **our** consent. If such salvage is not disposed of by sale then the claim will be assessed at the value agreed between **you** and **us** and taken into consideration at the settlement of the loss.

5. Contract Price

In respect of **stock** or finished goods, sold under a sale contract but not delivered and for which **you** are responsible, if the sale contract is cancelled due to the condition of the goods directly caused by **damage**, the amount **we** will pay will be based on the contract price.

For the purpose of this clause the value of all goods to which this basis of settlement could apply in the event of **damage** will also be ascertained on this basis.

6. Hired Out Equipment Precautions

In the event of **entertainment equipment** being hired out to a third party by **you** without being accompanied **you** or an **employee**, a formal hiring agreement will be issued by **you** holding the hirer responsible for **damage** caused to such equipment and that the hirer will cover **you** in the event of **damage**.

7. Inspection Requirement

We will not cover **you** for **damage** caused by explosion originating within any vessel, machine or apparatus or its contents, belonging to **you** or under **your** control which requires to be examined to comply with any statutory regulations, unless there is in force a policy of insurance or other contract providing the required inspection service.

8. Munitions of War

Regardless of any exclusion in this Policy with respect to war, **damage** to the **property insured** caused by or resulting from the detonation of munitions of war or parts of such, at or within one mile of the boundary of the **premises** will be covered, provided that the presence of such munitions does not result from a state of war current at the time of the **damage**.

9. Non-invalidating

If the risk of **damage** is increased by any act or omission, or by any alteration, that occurs without **your** knowledge, such increase will not invalidate this insurance, provided that **you** immediately on such act, omission or alteration coming to their knowledge, gives notice to **us** and pays such extra premium as **we** may require. However, nothing in this clause overrides the provisions of the Insurance Act 2015.

10. Other Interests

All parties who have an interest in property not belonging to **you** are noted as Loss Payees under this Section, but only to the extent that **you** has the responsibility to insure such interest.

11. Packing and Storage Precautions

You must:

- (a) take all reasonable precautions in the packaging of **entertainment equipment** prior to transit; and
- (b) ensure that any costumes are stored at least 6 inches above the floor level when in **your** care, custody and control.

12. Salvage

You will have full right to the possession of all goods involved in any **damage** and will retain control and, exercising reasonable discretion, will be the sole judge as to whether the goods involved in any **damage** are fit for use. No goods so deemed by **you** to be unfit for use will be sold or otherwise disposed of except by **you** or with **your** consent. However, **you** will allow **us** any salvage obtained on any sale or other disposition of such goods. in the event **you** elect to stamp "salvage" on the merchandise or its containers or removes or obliterates the labels or brands **you** will do so at **your** own expense.

13. Unoccupied Buildings

Unoccupied **buildings** will not be covered under this Section unless:

- (a) notice in writing is given to **us** that the **buildings** are **unoccupied** and payment of additional premium is made if requested by **us**;
- (b) **you** ensure all doors and windows are fitted with good quality locks and are secured at all times;
- (c) **you** brick up or boards over all unnecessary doors, windows, and other openings at first and ground floor levels;
- (d) notify **us** immediately if the **buildings** and all the **premises** are to be occupied by contractors for renovation, alteration, or conversion purposes;
- (e) complete any risk improvement put forward by **us** within the timescale specified by **us**;
- (f) **you** or **your** appointed representative inspects the **premises** internally and externally weekly; and
 - (i) maintains a record of such inspections;
 - (ii) ensures that any defects in the condition or state of repair of the **buildings** including any walls gates and fences or any defects in security alarm or
 - (iii) Fire Protection installations are rectified remedied or repaired immediately
- (g) **you** remove all combustible materials from inside and around the **buildings** and ensures that vegetation is kept under control; and,
- (h) **you** disconnect the gas, electricity and water services leaving only the central supplies for security alarms, water for the sprinklers and the like.

14. Waste Condition

We will not cover **you** under this Section for **damage** by fire or explosion unless **you** ensure that all hazardous and/or combustible trade waste is stored either:

- (a) in metal lidded containers; or
- (b) at a distance of at least five metres from any **building**.

15. Workmen's Clause

Workmen may be employed for the purpose of minor extensions, or alterations, installations, maintenance, and the like without invalidating the cover under this Section.

SECTION 2 - BUSINESS INTERRUPTION

What is Covered

We will pay for each item under this Section unless otherwise shown in the Schedule for an **incident** resulting solely from interruption or interference to **your business** caused by physical loss or **damage** to **your premises** or to **property insured** while in transit to and from and at an **event location**.

How much **we** will pay under this Section will be calculated in accordance with the Basis of Cover Applicable to Section 2.

Provided that:

1. at the time of the **damage**, there is in force an insurance covering the **premises** or to **property insured** against such **damage** and:
 - (a) payment has been made or liability will have been admitted; or,
 - (b) liability would have been admitted but for the operation of a proviso in such insurance excluding liability for losses below a specified amount.
2. The most **we** will pay under this Section including the Extensions to the Section will not exceed:
 - (a) the **limit of cover** as shown in the Schedule or
 - (b) the relevant **maximum indemnity period**;

whichever is exhausted earlier.

Definitions Applicable to Section 2

In this Section, wherever the following words appear in bold format, they will have the same meaning as defined here.

Additional Increase in Cost of Working

The additional expenditure necessarily incurred in order to minimise any interruption or interference with the business during the indemnity period.

Annual Revenue

The revenue during the 12 months immediately before the date of any **incident**

Business Interruption

Loss resulting from interruption of or interference with the **business** carried on by **you** at the **premises** in consequence of an **incident** to **property insured** used by **you** at the **premises** for the purpose of the **business**, or whilst used by **you** away from the **premises** for the purpose of the **business**.

Incident

The occurrence of **damage** to the **premises** or to **property insured** or in **transit** to or from the **premises** for the purpose of the **business** and where such **damage** is of a type that is covered under Section 1 or the cause of such **damage** is not excluded under the Policy.

Indemnity Period:

The period beginning with the occurrence of the **incident** and ending not later than the **maximum indemnity period**, during which the results of the **business** will be affected in consequence of any **incident**.

Increase in Cost of Working

The additional expenditure necessarily and reasonably incurred for the sole purpose of avoiding or diminishing the loss of **revenue** which but for that expenditure would have taken place during the **indemnity period**.

Loss of Revenue

The amount by which the revenue during the indemnity period falls short of the standard revenue.

Maximum Indemnity Period

The number of months shown in the Schedule, running consecutively from the commencement of the **indemnity period**.

Revenue

The money paid or payable to **you** for services rendered in the course of the **business** at the **premises**.

Standard Revenue

The revenue during the period in the 12 months immediately before the date of any **incident** which corresponds with the **indemnity period**

Basis of Cover Applicable to Section 2

Item 1. Loss of Revenue and Increase in Cost of Working

We will cover **you** under item for **business interruption** as a result of an **incident** for:

- (a) **loss of revenue**; and
- (b) **increase in cost of working**.

We will not pay **you** for:

- (a) **increase in cost of working** exceeding the amount of **loss of revenue** which has been avoided; or
- (b) any amounts saved during the **indemnity period** in respect of any of the charges and expenses of the **business** payable out of **revenue** that may cease or be reduced.

Item 2. Additional Increase in Cost of Working

We will cover **you** under item for **business interruption** for **additional increase in cost of working** beyond what is recoverable under clause (b) of Item 1.

Extensions Applicable to Section 2

1. Additional Rent: Data Processing and Ancillary Equipment

Cover under this Section is extended to include the payment of additional rent arising as a result of **business interruption** at the **premises** to any:

- (a) **data** processing; and/or
- (b) **ancillary equipment**;

caused by the cancellation of the lease/hire contract in force at the date of the **business interruption**.

We will also cover **you** for its replacement by a new contract for similar equipment in respect of the period:

- (a) commencing after the expiry date of the **maximum indemnity period**; and
- (b) ending not later than:
 - (i) 12 months after such date; or
 - (ii) the expiry of the lease/hire contract in force at the date of the **business interruption**

whichever is the sooner.

Provided that:

- (a) the **maximum indemnity period** in respect of this Extension will not exceed 12 months,
- (b) **we** will not pay more than GBP 25,000 in respect of an **incident**.

2. Essential Personnel

Cover under this Section extends to include reasonable costs required for avoiding or diminishing any interruption or interference with the business carried out by you at the premises, during the indemnity period due to:

- (a) the death or permanent disablement of any of **your**:

- (i) principles,
- (ii) directors,
- (iii) partners,

by accidental or external means which prevents them from carrying out of their usual employment or occupation.

Provided that:

- (a) the **maximum indemnity period** in respect of this Extension will not exceed 12 months;
- (b) will not pay more than GBP 25,000 in respect of an **incident**.

3. Extended Property

Cover under this Section is extended to include loss sustained by **you** directly caused by **business interruption** during the **indemnity period**, to property specified in (i) to (vi) below, within the **geographical limits** at another premises:

(i) Contract Sites

Premises not occupied by **you** where **you** are carrying out the contracts for the supply of goods or services.

(ii) Entertainment Equipment

Entertainment equipment belonging to or hired by **you** or held by **you** in trust whilst at the **premises** or at an **event location** and not in **your** occupation or in transit by road, rail or inland waterway.

(iii) Professional Documents

Premises in which documents belonging to, or held in trust by, **you**, are temporarily kept when not in **your** occupation, or whilst in **transit**.

(iv) Property Stored

Premises whilst **property insured** is stored in it, anywhere other than at the **premises** occupied by **you**, including while **property insured** is in **transit**.

(v) Unspecified Customers

Property of any other of **your** direct customers, with whom, at the time of the **damage** to the customer's property, **you** have contracts to supply goods or services.

(vi) Unspecified Suppliers

Property of any other of **your** direct suppliers, manufacturers, or processors of components, goods, or materials, at the time of the **damage** to the supplier's property, **you** have contracts for the supply of goods or services. However, this cover will not apply in respect of the property of any supplier of electricity, gas, or telecommunications services, and premises not occupied by **you** where **property insured** is stored.

The most **we** will pay under this Extension will not exceed:

- (a) the **limit of cover** for **revenue** for items i) and ii) above;
- (b) 10% of the **limit of cover** for **revenue** or GBP 100,000 whichever is the less for items iii) to vi) above.

The Automatic Reinstatement Clause under the General Conditions will not apply to this Extension.

The **maximum indemnity period** in respect of this Extension will be as shown in the Schedule.

4. Failure of Supply

This Section extends to cover **you** for loss as a result of interruption or interference to **your business**, during the **indemnity period** due to:

- (a) accidental failure of supply of:
 - (i) electricity at the terminal ends of the service provider's feeders at the **premises**;
 - (ii) gas at the service providers meter at the **premises**;
 - (iii) water at the service providers main stop cock serving the **premises**;
 - (iv) land based telecommunications services but excluding intranet or extranet services at the incoming line terminals or receivers at the **premises**;
 - (v) other telecommunications services, including Internet or extranet services at the incoming line terminals or receivers at the **premises**,

We will not be liable for any **business interruption**;

- (a) which does not involve a cessation of supply for:
 - (i) at least 4 consecutive hours in respect of the supply of electricity gas or water services; and
 - (ii) for at least 12 consecutive hours in respect of the supply of land based or other telecommunications services;
- (b) resulting from the deliberate act of any supply undertaking or by the exercise by any such undertaking of its power to withhold or restrict supply or service is not performed for the sole purpose of safeguarding life or protecting the supply undertaking system;
- (c) resulting from failure caused by:
 - (i) strikes or any labour or trade dispute;
 - (ii) drought;
 - (iii) other atmospheric or weather conditions

but this will not exclude failure due to **damage** caused by such conditions.
- (d) caused by or arising out from all attributable to the failure of any overhead transmission and distributing lines and their supporting structures other than those within one mile of the **premises**;
- (e) resulting from the failure of telecommunications services via satellite:
 - (i) due to the failure of any satellite prior to its attaining its full operating function or whilst in or beyond the final year of its design life;
 - (ii) in the event of temporary interference with transmissions to and from satellites due to atmospheric weather solar or lunar conditions; or
 - (iii) resulting from the transfer of the insured satellite facility to another party
- (f) as covered under the Supply Undertakings Extension;

Provided that the most **we** will pay under this Extension will not exceed:

- (a) the **maximum indemnity period** in respect of this Extension will be as shown in the Schedule.
- (b) more than GBP 25,000 in respect of an **incident**.

5. Fines and Damages

This Section extends to cover **you** for interruption or interference to **your business** for fines, penalties or damages imposed by the conditions of any contract between **you** and **your** customers for breach of contract which **you** are legally required to pay.

We will pay **you** to discharge of fines, penalties or damages for non- completion or late completion of orders or contracts, or in respect of cancellation of orders or contracts, as a result of **business interruption** at the **premises**,

Provided that the most **we** will pay under this Extension will not exceed:

- (a) the **maximum indemnity period** in respect of this Extension will not exceed 12 months.
- (b) more than GBP 25,000 in respect of an **incident**.

6. Legionella

This Section extends to cover **you** for interruption or interference to **your business** during the **indemnity period** due to

- (a) any discovery or suspicion of any organism at the **premises** likely to result in the occurrence of Legionnaires disease; or
- (b) an occurrence of Legionnaires disease at the **premises**;

which causes restrictions on the use of the **premises** on the order or advice of the competent local authority.

Provided that:

- (i) the **indemnity period** will mean the period during which the results of the **business** will be affected in consequence of the occurrence discovery or suspicion being with the date from which the restrictions on the **premises** are applied;
- (ii) the maximum **indemnity period** be three months;
- (iii) for the purposes of this Extension, **premises** will mean only those locations stated in the **premises** definition (If the policy includes an extension which deems loss destruction or **damage** at other locations to be **damaged** at the **premises** such extensions will not apply to this extension); and
- (iv) **we** will only be liable for loss resulting at the **premises** which are directly affected by the occurrence of discovery or suspicion;

The cover under this Extension includes costs and expenses incurred in the consequence of the **damage in respect of**:

- (I) cleaning and decontamination of the air conditioning and or water supply equipment
- (II) removal and disposal of contaminated **stock** and **entertainment equipment** at or from the **premises**
- (III) the value of contaminated **stock** and **entertainment equipment** destroyed as a result of the contamination at the **premises**;

The most **we** will pay under this Extension will not exceed GBP 50,000 for an **incident** and in the aggregate during the **policy period**.

7. Prevention of Access

Cover under this Section is extended to include loss resulting from **business interruption** during the **indemnity period**, as a result of **damage** to property within a radius of one (1) mile from the boundary of the **premises**, during the **policy period**, which prevents the use of the **premises** or access to it.

Cover under this Extension includes where prevention of access following **damage** to an **event location**, where the **property insured** at the **event location** is not **damaged** or destroyed.

However, **we** will not provide cover under this Extension for **business interruption**:

- (a) that does not involve prevention of access to or use of the **premises** for at least 12 consecutive hours;
- (b) where the prevention of access or use of the **premises** commenced prior to the **policy period**;
- (c) arising from **damage** to property of any supplier from which **you** obtain electricity, gas, water or telecommunications services, which prevents or hinders the supply of such services to the **premises**.

The most **we** will pay under this Extension is either 10% of the **limit of cover** or GBP 100,000 whichever is less.

The **limit of cover** will not be reinstated following a claim, meaning that any payment made on a claim under this Extension will reduce the **limit of cover** for this Extension available in respect of future claims.

8. Public Relations Expenses

Cover under this Section is extended to include the additional expenditure encouraged during the **indemnity period** of the employment of suitable public relations personnel to deal with the press and public announcements and other activities.

Provided that:

- (a) the maximum **indemnity period** in respect of this clause will not exceed 3 months; and
- (b) the most **we** will pay in respect of an **incident** will not exceed GBP 10,000.

9. Research and Development Costs

Cover under this Section is extended to include of additional expenditure incurred during the **indemnity period** solely to reconstitute records and rework projects and to restore research and development projects and to restore research and development projects to a state substantially similar to that which existed before the date of an **incident**.

Provided that:

- (a) **we** will not pay for more than one third of the limit shown below in respect of such additional expenditure arising in the first quarter of the **indemnity period** following the date of the **incident** or more than an equal proportion of the balance of the limit shown below per month in respect of the additional expenditure in the remainder of the **indemnity period**;
- (b) the maximum indemnity period in respect of this clause will not exceed 12 months; and
- (c) the most **we** will pay in respect of any one claim is GBP 125,000.

10. Supply Undertaking

Cover under this section is extended to include a **business interruption** loss during the **indemnity period** as a result of **damage** to property:

- (a) at any land based premises;
- (b) comprising any land based connecting cable pipe or pylon to the terminal connecting point at the **premises**;

of any supply undertaking service provider or producer which **you** obtain:

- (i) electricity including generating stations or substations;
- (ii) gas including any natural gas producer linked directly to it;
- (iii) water including any works and pumping stations;
- (iv) telecommunications services excluding intranet or extranet services;
- (v) other telecommunications services including intranet or extranet services.

We will not provide cover under this Extension for interruption or interference to **your business**:

- (i) which does not involve a cessation of supply for at least two consecutive hours in respect of paragraph (c) above
- (ii) caused by or arising from or attributable to any overhead transmission or distributing lines and their supporting structures other than those within one mile of the **premises**;
- (iii) for any amount exceeding the **limit of cover** for this Extension or GBP 10,000,000 whichever is the less.

Exclusions Applicable to Section 2

The following exceptions apply to this Section, in addition to the General Exclusions of this policy

1. Building Cracking or Collapse

We will not cover **you** against any loss arising from interruption or interference to **your business** consisting of or connected with **damage** to a **building** or a structure caused by its own collapse or cracking unless directly caused by a **defined peril** provided it is not otherwise excluded.

2. Cessation of Work

We will not cover **you** against any loss arising from interruption or interference to **your business** consisting of or connected with the cessation of work.

3. Corrosion, Rot, Damp

We will not cover **you** against any loss arising from interruption or interference to **your business** consisting of or connected with:

- (a) corrosion, rust, wet or dry rot, shrinkage, evaporation, loss of weight, dampness, dryness, marring, scratching, vermin, or insects;
- (b) aridity, humidity; rising damp, exposure to extremes of temperature, to moisture, light or heat; or
- (c) change in temperature, colour, flavour, texture, or finish.

but this will not exclude

- (i) loss or **damage** which is the result of **damage** which is covered under this Policy; or
- (ii) loss or **damage** which results from a **defined peril**.

4. Heat

We will not cover **you** against any loss arising from interruption or interference to **your business** resulting from the **property insured** undergoing

- (a) any heating process; or
- (b) any process of production, packing, treatment, testing, commissioning, servicing, or repair involving the application of heat

but this will not exclude loss or **damage** which is the result of **damage** which is covered under this Policy.

5. Inherent vice, Defective Workmanship, Operation of Machinery, Explosion

We will not cover **you** in respect of any loss from interruption or interference to **your business** consisting of or in connection with:

- (a) inherent vice, latent defect, gradual deterioration, wear and tear, frost, its own faulty or defective design or materials;
- (b) faulty or defective workmanship, or operational error or omission by **you** or any of **your employees**;
- (c) the operation of machinery, plant, apparatus or equipment unless such operation is in accordance with the manufacturer's instructions or specification;
- (d) explosion occasioned by the bursting of a boiler (not being a boiler used for domestic purposes only) economiser or other vessel, machine or apparatus in which the internal pressure is due to steam only and belonging to or under **your** control.

but this will not exclude loss or **damage** which is the result of **damage** which is covered under this Policy.

6. Leaks, Breakdown and Utilities

We will not cover **you** against any loss arising from interruption of or interference to **your business** consisting of or in connection with:

- (a) joint leakage, failure of welds, cracking, fracturing, collapse, or overheating of boilers, economisers, superheated pressure vessels, or any range of steam and feed piping used in connection to these;
- (b) mechanical or electrical breakdown or derangement in respect of the particular machine, apparatus, or equipment in which such breakdown or derangement originates;
- (c) the deliberate act of a supply undertaking in withholding the supply of water, gas, electricity, fuel, or telecommunications services;

but this will not exclude

- (i) loss or **damage** which is the result of **damage** which is covered under this Policy; or
- (ii) loss or **damage** which results from a **defined peril**.

7. Maintenance Agreement

We will not cover **you** against any loss arising from interruption or interference to **your business** as a result of **damage** recoverable under any guarantee or maintenance rental hire or lease agreement.

8. Pollution

We will not cover **you** against any loss arising from interruption or interference to **your business** consisting of or connected with pollution or contamination but this exception will not apply to **damage to property insured** directly caused by:

- (a) pollution, or contamination directly caused by a **defined peril**; or
- (b) **defined peril** resulting from pollution or contamination.

9. Property Insured away from the Premises

We will not cover **you** against any loss arising from interruption or interference to **your business** as a result of **damage to property insured**:

- (a) from or on an unattended vehicle or trailer during **working hours** unless:
 - (i) all doors, windows and other means of access have been secured and locked;
 - (ii) any alarms are activated; and
 - (iii) any **property insured** must be placed in the boot or similar luggage compartment of the vehicle to conceal it from sight and which is securely closed and locked;
- (b) from or on an unattended vehicle or trailer out of **working hours** unless:
 - (i) all doors, windows and other means of access have been secured and locked;
 - (ii) any alarms are activated;
 - (iii) any property insured must be placed in the boot or similar luggage compartment of the vehicle to conceal it from sight, and which is securely closed and locked; and
 - (iv) such vehicle or trailer is garaged in a securely closed and locked building or compound;
- (c) from or on an unattended soft topped open topped or open sided vehicle or trailer unless also involving theft of the vehicle or trailer;
- (d) where **property insured** is otherwise left unattended meaning it is not under your care, custody or control unless contained in a locked building of substantial construction or in a secure locked room;
- (e) in or on soft topped, open topped or open sided vehicles or trailers if caused by:
 - (i) storm, tempest, water, hail, frost or snow;
 - (ii) malicious persons when the vehicle or trailer is left unattended out of **working hours**.

This exclusion will not apply to **entertainment equipment** away from the **premises** whilst in transit and at an **event location**.

10. Property not covered

We will not cover **you** against any loss arising from interruption or interference to **your business** in respect of:

- (a) glass other than fixed glass, china, earthenware, marble, or other fragile or brittle objects;
- (b) jewellery, precious stones, precious metals, bullion, furs, curiosities, works of art, or rare books;

other than loss directly caused by a **defined peril**.

- (c) land, land values, roads, pavements, piers, jetties, bridges, culverts, shafts, mines or excavations;
- (d) animals, growing crops, or trees;
- (e) bullion, foreign coins, counterfeit or substitute money;
- (f) explosives;
- (g) electricity, gas, water or telecommunication transmission lines or pipes except for such lines or pipes which **you** are responsible for or which are located on, under or over the **premises**.

11. Subsidence

We will not cover you against any loss arising from **interruption or interference** to your business consisting of or connected with subsidence or ground heave or landslide:

- (a) of yards, car-parks, roads, pavements, walls, swimming pools, hot tubs, tennis courts, drives, patios and terraces, gates and fences unless a **building** at the **premises** covered is also **damaged**; or
- (b) of solid floors of a **building** at the **premises** unless the walls of the **building** is also **damaged** by the same occurrence of subsidence or ground heave or landslide;
- (c) caused by or consisting of:
 - (i) the normal settlement or bedding down of new structures;
 - (ii) the settlement or movement of made-up ground;
 - (iii) coastal or river erosion;
 - (iv) defective design or workmanship or the use of defective materials;
 - (v) compaction of infill;
 - (vi) demolition, construction, structural alteration or repair of any property at the **premises**;
 - (vii) groundworks or excavation at the **premises**; or
 - (viii) fire, subterranean fire, explosion, earthquake or the escape of water from any tank, apparatus or pipe;
- (d) where **damage** originated prior to the inception of this Policy.

12. Theft

We will not cover you against any loss arising from interruption or interference to **your business** caused directly by or consisting of theft or any attempted theft: by or in collusion with any **employee** or any other person lawfully on the **premises**.

13. Unoccupied Buildings

We will not cover you against any loss arising from interruption or interference to **your business** caused:

- (a) freezing;
- (b) escape of water from any tank, apparatus or pipe;
- (c) malicious persons, not acting on behalf of, or in connection with, any political organisation, other than fire or explosion;
- (d) theft or attempted theft;

in respect of any **building** which is **unoccupied**.

14. Unexplained disappearances

We will not cover you against any loss arising from interruption or interference to **your business**, directly or indirectly, consisting of or connected with unexplained disappearance, unexplained or inventory shortage, misfiling or misplacing of information.

15. Water Table

We will not cover **you** against any loss arising from interruption or interference to **your business** solely due to change in the water table level.

Conditions Applicable to Section 2

The following conditions apply to this Section in addition to the General Conditions

1. Alternative Premises

If during the **indemnity period** services are rendered elsewhere than at the **premises** for the benefit of the **business**, either by **you** or on **your** behalf, the money paid or payable for such services shall be taken into account in arriving at the **revenue** during the **indemnity period**.

2. Auditors and Accountants Charges

If **your** auditors or professional accountants produce any particulars or details required by **us** from **your** books of account or other **business** books or documents, or any other proofs, information or evidence under the claims conditions of this Policy, **we** will pay **you** the reasonable charges payable by **you** to their auditors or professional accountants, provided that the sum of such reasonable charges and any other amount payable under this Section will not exceed the **limit of cover** under this Section.

3. Current Cost Accounting

For the purposes of this Section, any adjustment implemented in current cost accounting will be disregarded.

4. Departmental

If the **business** is conducted in departments, the independent trading results of which can be ascertained, Item 1. Under the Basis of Cover will apply separately to each department affected.

5. New Business

If the **business** is in its first year of trading during the first **policy period**, and an **incident** occurs before completion of such first **policy period**, **annual revenue** and **standard revenue** will mean the following

- (a) Annual Revenue - the proportional equivalent, for the period of twelve (12) months, of the **revenue** realised during the period between the date of commencement of the **business** and the date of the **incident**.
- (b) Standard Revenue - the proportional equivalent, for the period equal to the **indemnity period**, of the **revenue** realised during the period between the date of commencement of the **business** and the date of the **incident**.

6. Payments on Account

We will at **your** option make monthly payments on account, during the **indemnity period**.

7. Premium Adjustment

You may at **our** option provide **us** with a declaration confirmed by **your** auditors of the revenue earned during the financial year most nearly concurrent with an expired policy. If any **incident** has occurred giving rise to a claim for **loss of revenue** the declaration will be increased by **us** for the purpose of premium adjustment by the amount by which the **revenue** has reduced during such financial years solely in consequence of the incident. If such declaration of **revenue**, proportionately increased where the maximum indemnity exceeds 12 months, is less than the **limit of cover** for **revenue** for the relative policy period will allow a pro rata return of premium not exceeding 50% of the premium paid.

8. Trends adjustment

Adjustments will be made to the figures representing the **annual revenue** and the **standard revenue** that may be necessary to:

- (a) provide for the trend of the **business**; and
- (b) for variations in or other circumstances affecting the **business**, either before or after the **incident**;
- (c) and which would have affected the **business** had the **incident** not occurred,

so that the adjusted figures represent as near as reasonably practicable results which but for the **incident** would have been obtained during the relative period after the **incident**..

SECTION 3 – TERRORISM

What is Covered

Subject to all the terms, Exclusions and Conditions of this Policy, the insurance provided by Sections 1, and 2 is extended by this Section to include any:

- (a) loss of or damage to **property insured**; and
- (b) where applicable under this insurance the loss from interruption of or interference with the **business**;

directly caused by **terrorism** occurring during the **policy period**.

Our limit of cover under this section in any **policy period** will not exceed the relevant **limit of cover** for each **occurrence** and in the aggregate for each of Sections 1 and 2 unless shown otherwise in the Schedule.

Definitions Applicable to Section 3

In this Section, wherever the following words appear in bold format, they will have the same meaning as defined here.

Certified Acts of Terrorism

Acts of persons acting on behalf of or in connection with any organisation which carries out activities directed towards the overthrowing or influencing by force or violence of His Majesty's Government in the United Kingdom or any other government de jure or de facto which are duly certified as such by His Majesty's Government or HM Treasury or any successor or other relevant authority as acts of terrorism.

Computer Data

data of any sort whatever, including without limitation tangible or intangible data, and any programs or software, bandwidth, cryptographic keys, databases, documents, domain names or network addresses or anything similar, files, interfaces, metadata, platforms, processing capability, storage media, transaction gateways, user credentials, websites, or any information whatever.

Computer Systems

a computer or other equipment or component or system or item which processes stores transmits or receives **computer data**.

Cyber Risks

any loss or losses, directly or indirectly caused by or contributed to by or arising from or occasioned by or resulting from

- (a) **damage** to or the destruction of any **computer system**; or
- (b) any alteration, modification, distortion, erasure or corruption of **data**;

In each case whether the property is **yours** or not or not, where such loss is directly or indirectly caused by or contributed to by or arising from or occasioned by or resulting from **virus or similar mechanism** or **hacking** or **phishing** or **denial of service attack**.

Denial of Service Attack

any actions or instructions constructed or generated with the ability to **damage**, interfere with or otherwise affect the availability or performance of networks, network services, network connectivity or **computer systems**. **denial of service attack** includes but is not limited to the generation of excess traffic into network addresses, the exploitation of system or network weaknesses and the generation of excess or non-genuine traffic between and amongst networks and the procurement of such actions or instructions by other **computer systems**.

Excluded Property:

1. any land or building which is insured in the name of an individual unless:
 - (a) the property is of sole commercial use; or
 - (b) it is insured in the name of a sole trader or a trustee or an executor and is not solely occupied as the private residence of the sole trader, or the trustee or the executor or a beneficiary of a trust or will; or
 - (c) it is partially occupied as private residence and the commercially occupied portion of the property exceeds 20% and it is insured under the same policy as the remainder of the building which is not a private residence;
2. any **nuclear installation** or **nuclear reactor** and all fixtures and fittings situated thereon and attached thereto and all pipes, wires, cables, drains or other conduits or service media of any description which are affixed or connected to or in any way serve such **nuclear installation** or **nuclear reactor**;
3. solely in respect of the Cyber Risks extension under the 'Extensions to Section 3'
 - (a) any money, currency, electronic cryptographic or virtual currency including Bitcoin or anything similar, negotiable or non-negotiable instruments, financial securities or any other financial instrument of any sort;
 - (b) any **data**;
4. property excluded in the Insurance to which this Extension attaches.

Hacking

unauthorised access to any **computer system**, regardless of whether it is **your** property or not.

Nuclear Installation

any installation of such class or description as may be prescribed by regulations made by the relevant Secretary of State by statutory instrument being an installation designed or adapted for:

- (a) the production or use of atomic energy;
- (b) the carrying out of any process which is preparatory or ancillary to the production or use of atomic energy and which involves or is capable of causing the emission of ionising radiations; or
- (c) the storage, processing or disposal of nuclear fuel or of bulk quantities of other radioactive matter, being matter which has been produced or irradiated in the course of the production or use of nuclear fuel.

Nuclear Reactor

any plant (including any machinery, equipment or appliance, whether affixed to land or not) designed or adapted for the production of atomic energy by a fission process in which a controlled chain reaction can be maintained without an additional source of neutrons.

Phishing

any access or attempted access to **computer data** or information made by means of misrepresentation or deception.

Virus or Similar Mechanism

program code, programming instruction or any set of instructions constructed with the purpose and ability, or purposely used, to **damage**, interfere with, adversely affect, infiltrate or monitor computer programs, **computer systems**, **computer data** or operations, whether involving self-replication or not. The definition of **virus** or Similar Mechanism includes but is not limited to trojan horses worms and logic bombs and the exploitation of bugs or vulnerabilities in a computer program to **damage**, interfere with, adversely affect, infiltrate or monitor as above.

Extensions Applicable to Section 3

The following extensions will only apply in respect of damage directly caused by a certified act of terror,

- (a) to **property insured**, shown in the Schedule to this Insurance, situated in England and Wales and Scotland (but not the territorial seas adjacent thereto as defined by the Territorial Sea Act 1987) and not in Northern Ireland, the Isle of Man nor the Channel Islands; and
- (b) the **certified act of terror** occurs during the **policy period**.

1. Chemical, Biological or Nuclear Risks

Cover under this Section is extended to insure the **damage** to the **property insured** caused by the following, as a direct result of a **certified act of terrorism**:

- (a) ionising radiations or contamination by radioactivity from any nuclear fuel or from any nuclear waste from the combustion of nuclear fuel; or
- (b) the radioactive, toxic, explosive or other hazardous properties of any explosive nuclear assembly or nuclear component thereof; or
- (c) chemical and/or biological and/or radiological irritants, contaminants or pollutants.

We will not cover **you** under this Extension for any loss or any expenditure resulting or arising there from or any consequential loss directly or indirectly caused by or contributed to by or arising from any of the above.

2. Cyber Risks

While **cyber risks** are excluded, losses otherwise falling within the exclusion of **cyber risks** will not be treated as excluded solely to the extent that such loss:

- (i) results directly (or, solely as regards (ii) C. below, indirectly) from
 - A. fire, explosion, flood, escape of water from any tank, apparatus or pipe (including any sprinkler system),
 - B. impact of aircraft or any aerial devices or articles dropped from them,
 - C. impact of any sea-going or water-going vessel or of any vehicle or of any goods or cargo carried in or on such vessel or vehicle,
 - D. destruction of, **damage** to or movement of buildings or structures, plant or machinery other than any **computer systems**; and
- (ii) comprises:
 - A. The cost of reinstatement, replacement or repair in respect of **damage** to or destruction of the **property insured** by **you**; or
 - B. the amount of **business interruption** loss suffered directly by **you**, by way of loss of or reduction in **revenue** or increased cost of working as a direct result of either, **damage** to or destruction of the **property insured** by **you** or as a direct result of denial, prevention or hindrance of access to or use of the **property insured** by **you**, by reason of **terrorism** causing **damage** to other **property** within one (1) mile of the **property insured** by **you** to which access is affected; or
 - C. the amount of loss caused by the cancellation, abandonment, postponement, interruption, curtailment or relocation of an event as a result of **damage** to or destruction of the type of **property** not excluded by this insurance and any additional costs or charges reasonably and necessarily paid by **you** to avoid or diminish such loss; and
- (iii) Is not proximately caused by **terrorism** in relation to which the relevant organisation or any persons acting on behalf of or in connection with that organisation are controlled by, acting on behalf of or part of any de jure or de facto government of any nation, country or state.

If one or more of the following occurs:

- A. fire, explosion, flood, escape of water from any tank, apparatus or pipe (including any sprinkler system),
- B. impact of aircraft or any aerial devices or articles dropped from them,
- C. impact of any sea-going or water-going vessel or of any vehicle or of any goods or cargo carried in or on such vessel or vehicle,
- D. destruction of, **damage** to or movement of buildings or structures, plant or machinery other than any **computer systems**;

directly or indirectly, resulting in any alteration, modification, distortion, erasure or corruption of **computer data**, which, in turn, causes losses or costs detailed under subparagraph (ii) above, that will not prevent cost or **business interruption** loss falling within subparagraphs (i) and (ii) above, from being recoverable under this insurance. In this case, the **data** exclusion under (3) (b) of the definition of 'Excluded Property', will not apply.

In no circumstances other than as provided in this paragraph, however, will any loss or losses directly or indirectly caused by, contributed to by, arising from, occasioned by or resulting from any alteration, modification, distortion, erasure or corruption of **computer data** be recoverable under this Insurance.

While Exclusions under Section 1 and 2 and the General Exclusions will not apply to this 'Extension to Section 3,' the insurance extended under Extension 1 and 2 above excludes and does not cover:

1. any **Excluded Property**;
2. any losses whatsoever arising under Marine, Aviation, Transit, Motor or Bankers Bond policies or any form of reinsurance policy or agreement;
3. loss or losses occasioned by riot, civil commotion, war, invasion, act of foreign enemy, hostilities (whether war be declared or not), civil war, rebellion, revolution, insurrection or military or usurped power;
4. **cyber risks**

Exclusions Applicable to Section 3

The following exclusions will not apply to 'Extensions to Section 3

1. Cyber Risks

We will not cover **you** under this Section for loss or losses, directly or indirectly caused by or contributed to by or arising from or occasioned by or resulting from

- (a) **damage** to or the destruction of any **computer system**; or
- (b) any alteration, modification, distortion, erasure or corruption of **computer data**;

In each case whether the **property** is **yours** or not, where such loss is directly or indirectly caused by or contributed to by or arising from or occasioned by or resulting from **virus or similar mechanism or hacking or phishing or denial of service attack**

2. Hoax

We will not cover **you** under this Section for loss or increased cost as a result of threat or hoax.

3. Prevention of Terrorism

We will not cover **you** under this Section for loss or **damage** caused by measures taken to prevent, suppress or control actual or potential terrorism or sabotage unless agreed by **us** in writing prior to such measures being taken.

4. Reinsurance

We will not cover **you** under this Section for any form of reinsurance policy or agreement.

5. Riot or Civil Commotion

We will not cover **you** under this Section in respect of any loss directly or indirectly caused by or contributed to by, or arising from, or occasioned by or resulting from riot or civil commotion.

6. Seizure or Illegal Occupation

We will not cover **you** under this Section for loss or seizure or illegal occupation unless the loss or **damage** is caused by **terrorism**.

7. Theft

We will not cover **you** under this Section for loss or **damage** caused by or arising out of burglary, house - breaking, looting, theft or larceny.

8. Unexplained Loss or Disappearance

We will not cover **you** under this Section for loss or **damage** caused by mysterious disappearance or unexplained loss.

9. Vandalism

We will not cover **you** under this Section for loss or **damage** caused by vandals or other persons acting maliciously or by way of protests or strikes, labour unrest, riots or civil commotion.

Conditions Applicable to Section 3

1. Burden of Proof

In any action suit or other proceedings where **we** allege that any **damage** or loss resulting from **damage** is not covered by the General Cover Policy, the burden of proving that such **damage** or loss is covered will be **your** responsibility.

2. Seventy two (72) hour clause

All claims for loss or series of losses under this Section sustained by **you** at the **premises**, directly arising out of and occasioned by any one act or series of **terrorism** carried out for the same purpose or cause, during any period of 72 consecutive hours, will be adjusted as one claim.

However, no such period of 72 consecutive hours may extend beyond the expiry date of the Policy period shown in the Schedule unless **you** have first sustained direct physical **damage** by **terrorism** prior to expiration and within said period of 72 consecutive hours. Further, such period of 72 consecutive hours will not commence prior to the inception date of the Policy period shown in the Schedule. **You** may choose the date and time when any such period of 72 hours will commence provided that no two periods overlap and no period commences earlier than the date and time of the happening of the first recorded individual loss to **you** as a result of **terrorism** in question.

SECTION 4 – MONEY

What is Covered

1. Money

We will cover **you** under this Section in respect of **money** which belongs to **you** or for which **you** are responsible, is lost, destroyed or **damaged** by any cause covered under this Policy.

We will provide such cover for **money** within the **geographical limits**, and up to the **limits of cover** shown in this Section.

We will also cover **you** for:

- (a) loss due to the fraud or dishonesty of any of **your** directors, partners or **employees**:
 - (i) discovered within 12 months of the **occurrence**; and
 - (ii) for an amount not exceeding GBP 25,000 and in the aggregate any one **policy period**;
- (b) the cost of repair or replacement following loss, destruction or **damage** to:
 - (i) Safes, strong rooms, or franking machines for an amount not exceeding GBP 10,000 any one safe or strongroom;
 - (ii) Bags, cases or waistcoats used for the carriage of **money** valued at the time of the loss or **damage**;
 - (iii) Clothing and personal effects belonging to an **insured person** as a result of an **assault injury** or from the threat of an **assault injury** for an amount not exceeding GBP 500 any one **insured person**.

2. Assault Injury

We will cover **you** under this Section in respect of an **insured person**, who, while carrying out the **business**, and directly from robbery or attempted robbery involving violence or the threat of violence suffers:

- (a) an **assault injury** resulting within 12 months which is directly and independently of any other cause in death or disablement;
- (b) emotional stress professional counselling, provided such counselling is recommended by a qualified medical practitioner and agreed to by **us** before costs are incurred.

We will pay to the **insured person** compensation in accordance with **benefits** listed in the Table of Benefits under this Section.

Definitions Applicable to this Section

In this Section, and within the General Definitions of the Policy, wherever the following words appear in bold format, they will have the same meaning as defined here.

Assault Injury

An injury:

- (a) which is sustained by the **insured person** during the **policy period**; and
- (b) directly caused by accidental, violent, external, and visible means; and
- (c) Solely, without other cause, results in the:
 - (i) death; or
 - (ii) **loss of limb**; or
 - (iii) **loss of sight**; or
 - (iv) **temporary total disablement**; or
 - (v) **permanent total disablement**

of an **insured person** within 24 consecutive months from the date of the accident/assault which caused the injury.

Benefits

The benefits listed under the Table of Benefits shown in this Section.

Business Hours

Your usual office hours and the working hours, including overtime, during which **you**, or **your employees** are on the **premises** for the purpose of the **business**.

Estimated Annual Carryings

Your estimate of the total value of **negotiable money** to be in transit during the **policy period**

Insured Person

You or any principal, director, or **employee** of **yours** aged between 16 and 70 years but excluding any person committing the robbery or attempted robbery.

In Transit

In transit in **your** personal custody, or in the custody of **your employees**, directors or authorised partner, or a security organisation approved by **us**, or by registered post.

Loss of a Limb

Loss by physical separation of a hand, at or above the wrist, or of a foot, at or above the ankle, and includes total and irrecoverable loss of use of hand, arm, foot, or leg which the **insured person** has survived for at least one month.

Loss of Sight

The total and irrecoverable loss of sight in one or both eyes.

Money

Negotiable money and **non-negotiable money** belonging to **you** and for which **you** are responsible. **Money** will not include electronic cryptographic or virtual currency, bullion, foreign coins, counterfeit or substitute money.

Negotiable Money

Cash, bank and currency notes, uncrossed cheques, giro cheques including pre-authenticated giro cheques, uncrossed warrants, uncrossed postal and money orders, current postage and revenue stamps, National Savings stamps and certificates, holiday with pay stamps and gift tokens, National Insurance stamps (whether affixed to cards or not), debit card sales vouchers, trading stamps, luncheon vouchers and bills of exchange, securities for money travel warrants and authenticated travel tickets and phone cards for use by **you** or any of **your** partners, directors or **employees** in connection with the **business**, consumer redemption vouchers and company sales vouchers and unexpired units in franking machines, all belonging to **you** or for which **you** have accepted responsibility.

Non-Negotiable Money

Crossed warrants, crossed cheques, crossed giro drafts, crossed postal and money orders, crossed bankers' drafts, crossed National Giro Bank cash cheques, premium bonds, savings bonds, stamped National Insurance cards, National Savings Certificates, VAT purchase invoices and credit card sales vouchers, all belonging to **you** or for which **you** have accepted responsibility.

Permanent Total Disablement

Disablement for at least 104, though not necessarily consecutive, weeks from engaging in, or giving attention to, a profession or occupation of any kind.

Temporary Partial Disablement

A disablement which continuously prevents the **insured person** from attending to a substantial part of their usual occupation.

Temporary Total Disablement

Temporary total disablement for less than 104, though not necessarily consecutive, weeks which prevents the **insured person** from attending to his usual business or occupation.

Unattended

Any vehicle with no person in charge or where neither any **insured person** is in a position to keep the vehicle under observation and able to observe or prevent any attempt by any person to interfere with the vehicle.

Extension Applicable to Section 4

1. Damage to the Premises

Provided that Section 1 Material Damage is covered under the Policy and in the event that buildings are not shown as covered in the Schedule, we will:

- (a) pay for the costs which **you** are responsible, and which **you** are necessarily and reasonably required to pay to repair damage to the **premises** as direct result theft or attempt theft of money within **your premises** and as covered by this Section; and
- (b) pay the cost temporary boarding up or making good necessary to keep the **premises** secure.

The most **we** will pay under this Extension in respect of each and every **occurrence** is GBP 5,000

2. Credit Cards

We will cover **you** for **your** legal liability for costs necessarily incurred by **you** as a result of use by an unauthorised person of:

- (a) bank cards,
- (b) credit cards,
- (c) charge cards, or
- (d) debit cards

belonging to **you** and for which **you** are responsible and arising before the card company has received notification that a card has been lost or stolen.

We will not cover **you** under this Section in respect of:

- (i) any loss brought about by any failure to comply with the terms under which the card was issued;
- (ii) any card issued personally to any of **your** directors, partners or **employees**;
- (iii) losses arising after 48 hours from discovery of the loss of the card;
- (iv) losses covered in whole or part by any other insurance, except in respect of any excess beyond the amount which would have been payable under such other insurance had this Section not been effected.

The most **we** will pay under this Extension is GBP 1,000 per **occurrence**.

3. Security Company Contingency Cover

We will cover **you** in respect of loss of **money** in the custody of a security company covered under this Section if in the event of loss **you** are unable to recover such **money** from the security company under the terms of the agreement between the security company and **you**.

Provided that

- (a) there must be in force an agreement between **you** and the security company in respect of money in the custody of a security company; and
- (b) **you** must provide **us** with a copy of the agreement between the security company and **you** at the start of the **policy period**; and
- (c) **you** must obtain **our** prior written consent before any changes are made to the agreement; and
- (d) **you** must comply with the terms of the security agreement.

Exclusions Applicable to Section 4

The following exceptions apply to this Section, as well as the General Exclusions of this Policy.

1. Accounting or Clerical errors

We will not cover **you** against loss or shortages due to clerical or accounting error or omissions.

2. Consequential Loss

We will not cover **you** against consequential loss, including currency fluctuations, or **damage** of any kind.

3. Cryptocurrencies or Virtual currencies

We will not cover **you** against any loss consisting of or connected with electronic cryptographic or virtual currency, including Bitcoin or similar virtual currency.

4. Fraudulent use

We will not cover **you** under this Section:

- (a) against loss resulting from use of any form of payment which proves to be counterfeit, false, invalid, uncollectible or irrecoverable for any reason or the fraudulent use of a computer or electronic transfer; or
- (b) for fraudulent use of **your** bank details or the details of credit cards, bankers or account cards, without the loss of or theft of the physical credit cards, bankers or account cards or cheques; or
- (c) **we** will not cover **you** against loss due to the fraud or dishonesty of any of **your** directors, partners or **employees**:
 - (i) not discovered within 12 months of the loss; or
 - (ii) not on a permanent contract; or
 - (iii) any dishonest act or omission committed by **your employees** after **you** first became aware of or had reasonable cause to suspect dishonesty on the part of that **employee** specifically insured elsewhere.

5. Personal Accident - Assault

We will not cover **you** for **assault injury** as a result of, or contributed to by:

- (a) the **insured person** having any physical or mental defect or infirmity, which was known to **you** or the **insured person**:
 - (i) at the start of this Policy; or
 - (ii) prior to the latest renewal of this Policy; and
 - (iii) which had not been declared to and accepted in writing by **us**;
- (b) **assault injury** to any person under the age of 16 years or over the age of 70 years.

6. Unattended Vehicle

We will not cover **you** for loss or damage due to theft from an **unattended** vehicle

7. Safes, strongroom and machines

We will not cover **you** for damage arising from or in connection to loss or damage:

- (a) to any machine which uses coins, notes or tokens;
- (b) safes or strongrooms unless the key or keys to the specified safes or strongrooms are removed from the **premises**, or if a person is authorised to hold such keys and that person lives on the **premises**, that person removes all keys to that part of the **premises** in which that person actually lives.

Conditions Applicable to Section 4

The following conditions apply to this Section, as well as the General Conditions of this policy.

1. Protections and Procedures for Money

We will not pay a claim under this Section if **you** fail to comply with any of following conditions:

- (a) all protections and procedures, undertaken at **our** request, for the safety of **money** whilst in the **premises**, are maintained in full and operated throughout the **policy period**;
- (b) the keys for all protections, and any safes containing money, are removed from the **premises** out of **business hours**;
- (c) **money** in transit must be accompanied at all times by the described number of able-bodied adults and must be distributed equally during such transit:
 - (i) over GBP 7,000, 2 able bodied adults;
 - (ii) over GBP 15,000, 3 able bodied adults
- (d) the times of transit, and routes used will be varied as far as possible.

2. Personal Accident Assault

Under this Section and in respect of the cover shown under the Table of Benefits:

- (a) compensation will not be payable under more than one of the **benefits** in connection with the same accident;
 - (ii) If Compensation is made under **benefit** Item No 2 – 4, this Section will thereafter cease to apply to the **insured person**;
 - (iii) Compensation under **benefits** Item No 1, 2 and 3 will be paid to the **insured person** or the representatives of the **insured person** in the event of death of the **insured person**, if the death, **loss or sight** or the **loss of limb** of the **insured person** occurs within twenty four (24) months from the date of the robbery or attempted robbery causing the **assault injury**;
 - (iv) **permanent total disablement** must last 104 weeks before **benefit** 4 becomes payable and will be paid for a maximum of two (2) years from the date of commencement of payment of the **permanent total disablement benefit**;
 - (v) the weekly rate provided by **benefit** 5 as shown in the schedule will not exceed the rate of the pre-accident weekly earnings of the **insured person**;
 - (vi) the weekly rate provided by **benefit** 5 as shown in the schedule will end if payment is made under **benefit** item no 1 - 4;
 - (vii) no sum payable under this Section will carry interest;
 - (viii) no **benefit** will be payable due solely to inability to take part in sports or pastimes.
- (a) Any certificates, information, and evidence required by **us** will be supplied, at **your** expense, in the form/format described by **us**. the **insured person** must allow medical examination(s) carried out on **our** behalf in connection with any claim, as often as required. the expense of the medical examinations will be paid for by **us**.
- (b) In the event of a claim being made for the cost of professional counselling, **you** must provide **us** with a recommendation for treatment in writing by a qualified medical practitioner;

3. Weekly Compensation

In respect of claims payments made following an **assault injury** to an **insured person** we will pay **you** weekly compensation when the total amounts to be paid have been agreed, or at **your** request, at the end of four consecutive weeks disablement.

Table of Benefits Applicable to Section 4

Personal Accident Assault		
Item No	Benefits	Limit of Cover
1	Death	GBP 25,000
2	Loss of sight and/or loss of limb	GBP 25,000
3	Permanent total disablement	GBP 25,000
4	Temporary total disablement	GBP 100 per week
5	Temporary partial disablement	GBP 50 per week
6	The cost of professional counselling (a) Per hour (b) any one insured person (c) In total	GBP 50 GBP 1,000 GBP 5,000

SECTION 5 – EMPLOYER'S LIABILITY

What is Covered

We will cover **you** under this Section in respect of all sums that **you** will become legally liable to pay (including claimant's costs and expenses) for **bodily injury** to any **employee** arising out of and in the course of their employment or engagement by **you**, and caused during the **policy period**:

- (a) within the **geographical limits**;
- (b) whilst temporarily outside the **geographical limits**, provided that such **employee** is ordinarily resident within the **geographical limits**; and
- (c) provided that any act for compensation in respect of such injury is brought in a court of law within the said territories or any other member country of the European Union.

Defence Costs

We will pay:

A. legal fees incurred with **our** prior written consent for representing **you** at:

- (i) any coroner's inquest or fatal accident inquiry in respect of any death; or
- (ii) proceedings in any court of summary jurisdiction, arising out of any alleged **bodily injury**

which may be the subject of cover under this Policy.

B. reasonable and necessary costs and expenses incurred with **our** prior written consent in relation to the investigation, adjustment or appraisal of any **occurrence** that may be the subject of cover under this Policy.

How Much We Will Pay

The most **we** will pay for all compensation, costs and expenses payable, including interest and the costs of defending a Health and Safety legislation prosecution in respect of any one claim or series of claims arising out of one occurrence will not exceed GBP 5,000,000 unless shown differently in the Schedule.

Provided that:

- (a) in respect of cover provided under this Section for **terrorism**, the **limit of cover** will not exceed GBP 5,000,000 unless shown otherwise in the Schedule;
- (b) in respect of the cover provided under this Section for the Corporate Manslaughter and Corporate Homicide Act 2007, the **limit of cover** will not exceed GBP 5,000,000 in any one **policy period** unless shown otherwise in the Schedule.
- (c) where **we** have already covered **you** in respect of legal costs or expenses incurred in connection with the defence of any criminal proceedings, including appeals against conviction arising from such proceedings, arising out of the same occurrence which gave rise to said proceedings under another Section of the Policy the amount paid under that Section will contribute to the maximum amount payable under this Section;
- (d) payments in relation to defence costs will be inclusive of the amount stated as the **limit of cover**.

If **we** decide that by reason of this limitation any loss damage cost or expense is not covered the burden of proving the contrary will be **yours**.

Definitions Applicable to Section 5

In this Section, wherever the following words appear in bold format, they will have the same meaning as defined here.

Bodily Injury

death, injury, illness, or disease; and injury may also include nervous shock, mental anguish, and medically recognised psychiatric injury to an **employee**.

Employee

any person while working for **you** in connection with the **business** who is:

- (a) under a contract of service or apprenticeship with **you**;
- (b) hired to or borrowed by **you**;
- (c) engaged in connection with a work experience or training scheme;
- (d) a labour master or person supplied by them;
- (e) engaged by labour only sub-contractors;
- (f) a self-employed person working on a labour only basis under **your** control or supervision;
- (g) any voluntary helper;
- (h) a trainee or person undergoing work experience;
- (i) a driver or operator of hired-in plant;
- (j) any homework or outworker
- (k) any person under the Community Offenders Act 1978, the Community Service by Offenders (Scotland) Act 1978 or similar legislation; and
- (l) any person a court of law in the United Kingdom deems to be an employee

Offshore Installations

- (a) any installation in the sea or tidal waters which is intended for underwater exploitation of mineral resources or exploration with a view to such exploitation;
- (b) any installation in the sea or tidal waters which is intended for the storage or recovery of gas;
- (c) any pipe or system of pipes in the sea or tidal waters; and
- (d) any installation which is intended to provide accommodation for persons who work on or from (a), (b). or (c) above.

Offshore Work

the time of embarkation by an **employee** onto a conveyance at the point of final departure, to either an offshore installation or vessel, until disembarkation by an **employee** from a conveyance onto land upon return from either an **offshore installation** or vessel.

Extensions Applicable to Section 5

1. Court Attendance Compensation

If during the **policy period** any partner, director or **employee** of **yours** is required to attend court as a witness at **our** request in connection with a claim which is the subject of cover under this Section **we** will pay compensation to **you** on the following scale for each day that attendance is required

- (a) any director or partner GBP 750
- (b) any **employee** GBP 250

2. Health and Safety at Work etc Act 1974

Cover under this Section is extended to include:

- (a) reasonable and necessary costs and expenses incurred with **our** prior written consent in relation to the investigation, adjustment or appraisal of any loss that may be the subject of cover under this Policy;
- (b) any appeal where legal counsel has advised that there is a reasonable prospect of success;
- (c) costs and expenses awarded against **you**, or a director or **employee** of **yours**;

in connection with a conviction resulting from a prosecution as a result of an alleged offence occurring during the **policy period** under:

- (i) sections 2-8 of the Health and Safety at Work Act 1974, or
- (ii) the Construction (Design & Management) Regulations 2015,

or equivalent safety legislation of Great Britain, Northern Ireland, the Channel Islands, or the Isle of Man.

Provided that **we** will not cover **you** under this Extension:

- (I) for any **excess**; or
- (II) where the prosecution results from a deliberate management decision, act, or omission and which would knowingly or could reasonably have been expected by **you** to result in a liability or the committing of an offence under the Act.

3. Indemnity to Other Parties

Cover under this Section is extended to include the following:

- (a) In the event of **your** death, to any personal representative of **yours** in respect of liability incurred by **you** and, if **you** so request, **we** will cover the following parties;
 - (i) any officer or committee member or other member of **your** canteen, social, sports, welfare organisations, fire and security services or ambulance, first aid and medical services against liability incurred in such capacity;
 - (ii) any partner, director or **employee** of **yours** against liability incurred in such capacity and in respect of which **you** would have been entitled to cover under this Section if the claim had been made against **you**;

as though each party was individually named as covered under this Section;

- (b) any principal with which **you** have agreed to execute work under contract or agreement against liability arising out of the performance of such work by **you** and in respect of which **you** are legally liable and would have been entitled to cover under this Section if the claim had been made against **you**

Provided that:

- (i) each such party will observe, fulfil and be subject to the terms and conditions of this Section in so far as they can apply; and
- (ii) the most **we** will pay to **you** and all parties covered will not exceed the **limit of cover** shown in the Schedule.

4. Manslaughter and Culpable Homicide

Cover under this Section is extended to include:

- (a) reasonable and necessary costs and expenses incurred with **our** prior written consent in relation to the investigation, adjustment or appraisal of any loss that may be the subject of cover under this Policy;
- (b) costs and expenses awarded against **you**, or a director or **employee** of the **yours**;
- (c) any appeal where legal counsel has advised that there is a reasonable prospect of success;

in connection with a conviction resulting from a prosecution as a result of an alleged offence occurring during the **policy period**:

- (i) of manslaughter or culpable homicide; or
- (ii) of corporate manslaughter or corporate homicide under the Corporate Manslaughter and Corporate Homicide Act 2007 and where the circumstances of the alleged offence may be the subject of cover under this Policy.

Provided that **we** will not pay:

- (I) for any **excess**;
- (II) where the prosecution results from a deliberate management decision, act, or omission and which would knowingly or could reasonably have been expected by **you** to result in a liability or the committing of an offence under the Act;
- (III) costs and expenses provided by another source or any other insurance or where but for the existence of this Extension would have been provided by such source or insurance; and
- (IV) costs and expenses incurred outside of the **geographical limits**.

5. Unsatisfied Court Judgements

In the event that a judgement for damages against a third party is, in the first instance, obtained:

- (a) from, or under the jurisdiction of, a court in Great Britain, Northern Ireland, the Channel Islands, or the Isle of Man;
- (b) by an **employee**, or the personal representative(s) of an **employee**;
- (c) which is in respect of **bodily injury**, caused during the **policy period** and arising out of the **employee's** employment or engagement by **you** in the **business**; and
- (d) which remains unsatisfied in whole or in part six months after the date of such judgement; then, at **your** request **we** will pay to the **employee**, or the personal representative(s) of the **employee**, the amount of any damages or awarded costs to the extent that they remain unsatisfied.

Provided that:

- (i) there is no appeal outstanding;
- (ii) **we** will be entitled to take over, and prosecute for its own benefit, any claim against any other person, and **you**, the **employee**, or the personal representative(s) of the **employee**, shall give all information and assistance required by **us**.

Exclusions Applicable to Section 5

The following exclusions apply to this Section, as well as the General Exclusions of this policy.

We will not cover **you** against liability including costs and expenses:

1. Offshore

That arises from visits, or **offshore work** by an **employee**.

2. Road Traffic Act

In respect of which compulsory insurance or security is required to be arranged by **you** under the Road Traffic Act 1988, or the Road Traffic (Northern Ireland) Order 1981, or any subsequent legislation amending or replacing such Act or Order.

Conditions Applicable to section 5

The following conditions apply to this Section, as well as the General Conditions of this policy.

1. Certificate of Employers' Liability

If this Policy or Section is cancelled any Certificate of Employers' Liability Insurance issued will also be cancelled from the same date.

2. Compulsory Insurance Legislation

The cover provided under this Policy is deemed to be in accordance with such provision as any law relating to compulsory insurance of liability to employees in Great Britain, Northern Ireland, the Channel Islands, or the Isle of Man, may require but **you** repay to **us** all sums paid by **us**, which **we** would not have been liable to pay but for the provisions of such law.

3. Employers' Liability Tracing Office

As members of the Employers' Liability Tracing Office (ELTO), an independent industry body, **we** have to provide **your** Employer's Reference Number (ERN) and all **your** subsidiary company names and ERNs in order for this information to be added to their centralised electronic database. This database assists those who may suffer a workplace injury or disease to identify the relevant Employers' Liability insurer quickly. Therefore, it is important that **you** provide these details to **us** at the inception of the Policy and promptly thereafter following any acquisition, removal or creation of any subsidiary company.

SECTION 6 – PUBLIC AND PRODUCTS LIABILITY

What is Covered

We will cover **you** under this Section in respect of all sums that **you** will become legally liable to pay (including claimant's costs and expenses) arising out of:

- A. accidental **personal injury** to any person;
 - B. accidental loss of, or damage to, **property**;
 - C. accidental obstruction, loss of amenities, trespass, nuisance, or interference with any right of way, light, air, or water;
- occurring during the **policy period** anywhere within the **territorial limits** arising in connection with the **business** including in relation to the supply of any **product** by **you**.

Rights of Recovery

The cover provided under this Policy is deemed to be in accordance with such provision as any law relating to compulsory insurance of liability to employees in Great Britain, Northern Ireland, the Channel Islands or the Isle of Man, may require, but **you** will repay to **us** all sums paid by **us** which **we** would not have been liable to pay, but for the provision of such law.

Defence Costs

We will, subject to any **excess**, pay:

- A. legal fees incurred with **our** prior written consent for **your** representation at:
 - (i) any coroner's inquest or fatal accident inquiry in respect of any death; or
 - (ii) proceedings in any court of summary jurisdiction, arising out of any alleged **bodily injury** or loss of, or damage to, **property**;

which may be the subject of cover under this Policy.

- B. reasonable and necessary costs and expenses incurred with **our** prior written consent in relation to the investigation, adjustment or appraisal of any **occurrence** that may be the subject of cover under this Policy.

Payments stated in A and B above will be payable in addition to the **limit of cover**.

Where such payments are made in connection with legal proceedings that are or may be subject to the jurisdiction of the United States of America and/or Canada and/or their respective possessions or protectorates, the **limit of cover** will be inclusive of all payments.

How Much We Will Pay

The most **we** will pay under this Section:

- (a) for all compensation and claimants' costs payable in respect of:
 - (i) any **occurrence of bodily injury, personal injury** or loss of or damage to **property**; or
 - (ii) all **occurrences of bodily injury, personal injury**, loss and damage to **property** during the **policy period** and caused by or arising from **products**;

will not exceed the limit of cover GBP 5,000,000 unless shown otherwise in the Schedule.

- (b) in respect of **terrorism**, will not exceed GBP 5,000,000 or the **limit of cover** shown in the Schedule (whichever is the lesser);
- (c) in respect of an **occurrence of pollution or contamination** during any one **policy period**, will not exceed GBP 5,000,000 or the **limit of cover** shown in the Schedule (whichever is the lesser);

If **we** determine that by reason of this limitation any loss damage or expense is not covered the burden of proving the contrary will be **yours**.

Definitions Applicable to Section 6

In this Section, wherever the following words appear in bold format, they will have the same meaning as defined here.

Bodily Injury

death, injury, illness, or disease; and injury may also include nervous shock, mental anguish, and medically recognised psychiatric injury to a person;

Personal Injury

bodily injury, and related wrongful arrest, detention, imprisonment, or eviction, of any person, and wrongful accusation of shoplifting.

Pollution

- (a) all pollution or contamination of buildings or other structures, or of water or land or the atmosphere, and
- (b) all **bodily injury**, loss or damage directly or indirectly caused by such pollution or contamination

All Pollution or Contamination which arises out of one incident will be deemed to have occurred at the time such incident takes place

Product

any product or goods (including packaging, containers, labelling, instructions, or advice, provided in connection therewith):

- (a) manufactured, sold, supplied, distributed, by or on behalf of, **you**;
- (b) erected, repaired, serviced, altered, treated, installed, or incorporated into any other **product of yours**;

in the course of the **business**, and which is not in **your** care, custody, or control.

Property

tangible property but this will not include information (including electronically stored information), **money**, intellectual property, or intangible property rights of any kind.

Territorial Limits

- (a) the **geographical limits**;
- (b) in respect of **bodily injury, personal injury**, loss or damage caused by or arising from manual and non-manual work occurring during any temporary visit or journey anywhere in the world by any partner, director or **employee of yours** who is normally resident within the **geographical limits**; and
- (c) in respect of **bodily injury, personal injury**, loss or damage caused by or arising from manual and non-manual work occurring anywhere in the world by any **employee of yours** who is not normally resident within the **geographical limits** whilst engaged outside of the **geographical limits**; and
- (d) anywhere in the world in respect of **products**.

Extensions Applicable to Section 6

1. Clean- Up

For the purpose of this Extension the following definitions will apply:

- (a) **Enforcing Authority** - any government or statutory authority or body implementing or enforcing **environmental legislation** within the **geographical limits**;
- (b) **Environmental Legislation** - any legislation for the protection of the environment or control of **pollution or contamination**;
- (c) **Remediation** - works or operations to treat, remove or dispose of **pollution**.

However, this does not include works or operations to restore natural habitats or species protected under **environmental legislation**

In respect of **pollution or contamination** occurring within the **geographical limits** caused by a sudden identifiable, unintended and unexpected incident which takes place in its entirety at a specific time and place during the **policy period**, cover under this Section is extended to include:

- (a) the cost of any **remediation** legally required or ordered by an **enforcing authority** in accordance with **environmental legislation** to be carried out by **you**, and
- (b) the cost of any **remediation** conducted by an **enforcing authority** sought from **you** by that **enforcing authority** in accordance with the terms of **environmental legislation**.

The cover under this Extension is provided only to the extent that the **remediation** cost relates to the minimums necessarily conducted under the provisions of **environmental legislation**.

Provided that **we** will not cover you under this Extension for:

- (i) **costs of remediation** carried out on or in order to protect any **property** belonging to **you** or in **your** care, custody or control, other than **premises** not belonging to, leased, rented or hired to **you**, but temporarily in **your** charge for the purpose of carrying out work;
- (ii) any claim outside the **geographical limits**;
- (iii) costs in respect of the reinstatement or reintroduction of flora or fauna;
- (iv) **pollution** consisting of any of any radioactive substances or asbestos;
- (v) **pollution** caused by **products**;
- (vi) **pollution** caused by or arising out of the ownership operation or use of any motor vehicle (whilst on any road), marine vessel or aircraft;
- (vii) any measures to prevent the spread of any **pollution** or the removal of an immediate threat of **pollution**;
- (viii) the removal or disposal of any waste deposited by, **you** or on **your** behalf;
- (ix) any amounts payable by way of compensation to third parties affected by such **pollution**;
- (x) any costs and expenses incurred by **you**, or prosecution costs and expenses awarded against **you**, in connection with any criminal proceedings arising out of the **pollution**; or
- (xi) any works or operations that improve the state or condition of water or land in comparison with its state or condition immediately prior to the incident that caused the **pollution**.

The most we will pay under this Extension is GBP 1,000,000 per any one **policy period**.

2. Cloakroom Liability

Cover under this Section is extended to include **your** liability for loss of or damage to any personal effects of guests, attendees or visitors whilst deposited in any cloakroom at the **premises** or **third-party premises**.

We will not cover **you** under this Extension unless **you**:

- (a) issue numbered tickets in respect of articles deposited in any cloakroom;
- (b) ensure that cloakrooms are locked and secured when left unattended;
- (c) return items from the cloakroom only upon the production of the appropriate numbered ticket;
- (d) display a Disclaimer Notice in cloakroom areas; and
- (e) pay the excess of GBP 100 for each claim.

The most **we** will pay under this Extension is GBP 500 in total for property deposited by any one person.

For the purposes of this Extension, Exclusion 2 under Exclusions Applicable to Section 6 will not apply.

3. Consumer Protection Act 1987 and Consumer Rights Act 2015 and the Food Safety Act 1990

Cover under this Section is extended to include:

- (a) costs and expenses incurred with **our** prior written consent in relation to the investigation, adjustment or appraisal of any occurrence that may be the subject of cover under this Policy;
- (b) any appeal where legal counsel has advised that there is a reasonable prospect of success; and
- (c) costs and expenses awarded against **you**;

in connection with a prosecution for a conviction resulting from a prosecution as a result of an alleged offence under:

- (i) Part II of the Consumer Protection Act 1987; and
- (ii) Section(s) 7, 18, 14, and/or 15 of the Food Safety Act 1990;

which occurs during the **policy period**, and where the circumstances of the alleged offence may be the subject of cover under this Policy.

Provided that:

- (d) **we** will conduct and control of all the said proceedings and appeals; and
- (e) **we** will not pay:
 - (i) where the prosecution results from a deliberate management decision, act, or omission and which would knowingly or could reasonably have been expected by **you** to result in a liability or the committing of an offence under the Act;
 - (ii) for all amounts which exceed the **limit of cover** for this Section.

4. Contingent Employers Liability

Cover under this Section is extended to include:

- (a) legal liability for **bodily injury** to any **employee** engaged outside of the **geographical limits** (referred to as "**overseas employee**") arising out of and in the course of employment by **you** on behalf of the **business** and caused during the **policy period**;
- (b) a claim for damages and claimant's costs and expenses is made on behalf of an **overseas employee** by any state, social security or similar scheme exercising subrogation rights against **you**, subject otherwise to the terms, exclusions, limitations and conditions applicable to this Section.

We will not cover **you** under this Extension for:

- (i) any Workers' Compensation or Employers' Liability insurance is required to be effected and maintained in any country or state to comply with the laws of that country or state;
- (ii) cover provided by any social security or similar scheme in any country or state; or
- (iii) insurance or security is required in accordance with any road traffic legislation in force in any country.

The total amount **we** will pay under (a) and (b) including all costs and expenses under this Extension in respect of any **occurrence** will not exceed GBP 5,000,000.

5. Contingent Non-Owned Motor Vehicle

Cover under this Section extends to include **bodily injury**, and **damage to property**, arising out of the use of any mechanically propelled vehicle or attached trailer, used in connection with the **business**, which is not **your** property or which has been provided by **you**.

We will not provide cover under this Extension for:

- (a) **damage** to, any mechanically propelled vehicle, attached trailer, or to **property** contained within or carried on;
- (b) cover provided to any party under the Extension; Indemnity to Other Parties other than an **employee**;
- (c) arising out of any such use in any country outside of the **European Union**;
- (d) **bodily Injury** or **damage to, property** resulting while such vehicle is being:
 - (i) driven by **you**;
 - (ii) driven with **your** consent, or that of **your** representative, by any person who, does not hold a licence to drive such vehicle; unless such person has held and is not disqualified from holding or obtaining such a licence;
 - (iii) used in circumstances in which it is compulsory for **you** to insure or provide security as a requirement of any road traffic legislation;

For the purposes of this Extension, Exclusion 16 under Exclusions Applicable to Section 6 will not apply.

6. Contractual Liability

Cover under this Section is extended to include liability arising from **bodily injury** or **damage to property** assumed by **you** by a contract or agreement entered into by **you** and which would not have attached in the absence of such contract or agreement. The cover provided by this Section will only apply if the sole conduct and control of any claim is vested in **us**.

We will not cover **you** under this Extension:

- (a) in respect of liquidated damages, or fines or damages imposed by or payable under any penalty clause
- (b) for losses which would otherwise be excluded under this Section or the Policy.

7. Court Attendance Compensation

Cover under this Section is extended to include that if during the **policy period** any principal, partner, director or **employee** of **yours** is required to attend court as a witness at **our** request in connection with a claim which is the subject of cover under this Section. **We** will pay compensation to **you** on the following scale for each day that attendance is required:

- (i) any director or partner GBP 750
- (ii) any **employee** GBP 250

8. Damage to Leased or Rented Premises

Cover under this policy extends to include liability for accidental loss of, or damage to, premises including fixtures or fittings leased or hired by, or rented to, **you** under a contract or agreement.

We will not cover **you** under this Extension for:

- (a) liability assumed by **you** under such contract or agreement, which would not have attached in the absence of such contract or agreement, unless agreed to in writing by **us**;
- (b) for fire or any other peril against the extent to which such contract or agreement requires that insurance is effected;
- (c) arising out of breach of any term, condition, or warranty, under any other applicable insurance policy.

For the purposes of this Extension, Exclusion 2 under Exclusions Applicable to Section 6 will not apply.

9. Data Protection

We will cover **you** and if **you** request any **employee** or director or partner of **yours** for damage or distress occurring as a result of an offence under Section 13 of the Data Protection Act 1998 or any subsequent overriding legislation committed during the **policy period** within the **geographical limits** and arising in connection with the **business**.

Provided that:

- (a) **you** are a registered user in accordance with the terms of such legislation;
- (b) **you** are not in a business as a data processing bureau;
- (c) the claimant:
 - (i) is the subject of personal data held by **you**;
 - (ii) suffers damage or distress caused by inaccuracy, loss, unauthorised destruction or disclosure of or access to the data

We will not cover you under this Extension for:

- (a) any damage or distress caused by any deliberate act or omission by **you**, the result of which could reasonably have been expected by **you**, having regard to the nature and circumstances of such act or omission;
- (b) the cost in expenses of replacing reinstating rectifying or erasing blocking or destroying any data or personal data;
- (c) any damage or distressed caused by any act of fraud or dishonesty;
- (d) liability arising from the recording processing or provision of **data** or **personal data** for reward or to determine the financial status of any person; or
- (e) **data** and **personal data** will have the meaning defined in the Data Protection Act 1998 or any subsequent overriding legislation.

The most **we** will pay for all compensation, claimants' costs and expenses and other costs and expenses under this extension in respect of all claims occurring during any one **policy period** will not exceed GBP 2,000,000.

10. Defective Premises Act

Your cover under this Section is extended to include your legal liability under: Section 3 of the Defective Premises Act 1972 or Section 5 of the Defective Premises (Northern Ireland) Order 1975, in respect of the disposal of any of **your premises** which were occupied or owned by **you** in connection with the **business**.

We will not cover **you** under this Extension for:

- (a) the cost of remedying any defect, or alleged defect, in such premises; or
- (b) the presence of asbestos.

11. Health and Safety at Work etc Act 1974

We agree to cover **you** for:

- (a) costs and expenses incurred with **our** prior written consent in relation to the investigation, adjustment or appraisal of a loss that may be the subject cover under this Policy;
- (b) any appeal where legal counsel has advises that there is a reasonable prospect of success; and
- (c) costs and expenses awarded against **you**, or **your** director(s) or **employee(s)**;

in connection with a conviction resulting from a prosecution as a result of an alleged offence occurring during the **policy period** under:

- (i) sections 2-8 of the Health and Safety at Work Act 1974;
- (ii) Safety at Work (Northern Ireland) Order 1978;
- (iii) the Construction (Design & Management) Regulations 2015, or
equivalent safety legislation of Great Britain, Northern Ireland, the Channel Islands, or the Isle of Man.

Provided that:

- (a) the proceedings relate to the health, safety or welfare of any person other than an **employee**;
- (b) **we** will have the conduct and control of all the said proceedings and appeals;

We will not cover **you** under this Extension

- (i) where the prosecution results from a deliberate management decision, act, or omission and which would knowingly or could reasonably have been expected by **you** to result in a liability or the committing of an offence under the Act;
- (ii) for all amounts which exceed the **limit of cover** for this Section.

12. Indemnity to Other Parties

Cover under this Section is extended to include:

- (a) in the event of **your** death, to any personal representative of **yours** in respect of liability incurred by **you**,
- (b) and if **you** so request **we** will cover the following parties:
 - (i) any officer or committee member or other member of **your** canteen, social, sports, welfare organisations, fire and security services or ambulance, first aid and medical services against liability incurred in such capacity;
 - (ii) any partner, director or **employee** of **yours** against liability incurred in such capacity and in respect of which **you** would have been entitled to cover under this Section if the claim had been made against **you** as though each party were individually named in this Section
 - (iii) any principal for whom **you** have agreed to execute work under contract or agreement against liability arising out of the performance of such work by **you** and in respect of which **you** are legally liable and would have been entitled to cover under this Section if the claim had been made against **you**;
 - (iv) any land or venue owner providing facilities to **you** under contract or agreement against liability arising out of the performance of work by **you** and in respect of which **you** are legally liable and would have been entitled to cover under this Section if the claim had been made against **you**.

Provided that:

- (i) each such party must observe fulfil and be subject to the terms and conditions of this Section in so far as they can apply;
- (ii) the most **we** will pay for all amounts which exceed the **limit of cover** for this Section.

13. Manslaughter and Culpable Homicide

Cover under this Section is extended to include:

- (a) costs and expenses incurred with **our** prior written consent in relation to the investigation, adjustment or appraisal of loss that may be the subject of cover under this Policy;
- (b) any appeal where legal counsel has advised there is a reasonable prospect of success;
- (c) costs and expenses awarded against **you**, or **your** director(s) or **employee(s)**;

in connection with a conviction resulting from a prosecution as a result of an alleged offence occurring during the **policy period**:

- (i) of manslaughter or culpable homicide; or
 - (ii) of corporate manslaughter or corporate homicide under the Corporate Manslaughter and Corporate Homicide Act 2007;
- where the circumstances of the alleged offence may be the subject of indemnity under this Policy.

Provided that **we** will not cover **you** under this Extension for:

- (i) for any **excess**;
- (ii) where the prosecution results from a deliberate management decision, act, or omission and which would knowingly or could reasonably have been expected by **you** to result in a liability or the committing of an offence under the Act;
- (iii) costs and expenses in connection with the defence of any criminal proceedings brought outside of the **geographical limits**.

The most **we** will pay under this Extension will not exceed GBP 5,000,000 or the **limit of cover** shown in the Schedule (whichever is the lesser) in any one **policy period**. All amounts payable will form part of and not be in addition to the **limit of cover** for this Extension.

14. Non-Negligence Liability Damage

Cover under this Section is extended to include compensation for any damage to **third party premises** including contents and/or any other property for which **you** would be deemed responsible by contract or otherwise.

Provided that **we** will not cover **you** under this Extension for:

- (i) the amount in excess of GBP 10,000 any one **occurrence**;
- (ii) any amount of excess at GBP 250;
- (iii) any liability in respect of loss or damage to any ground (including but not limited to any pitch, grass area or athletic track) where such damage would be regarded as inevitable and arising in the ordinary course of the **business**.

15. Overseas Personal Liability

Cover under this Section is extended to include where **you** notify **your** intention to **us**, any director, partner, or **employee**, or any member of their family or persons normally resident with them, against all sums in respect of:

- (a) **bodily injury** or
- (b) loss of, or damage to, **property**,

that they will become legally liable to pay as a result of loss during the **period of insurance** whilst travelling outside the **geographical limits** in connection with the **business**.

Provided that **we** will not cover **you** under this Extension for:

- (i) in respect of the ownership or occupation of land; or
- (ii) where cover is provided by any other insurance.

16. Unauthorised Movement of Vehicles

We will cover **you** in respect of liability rising from any vehicle not owned, hired by, or loaned to **you** which is being driven by **you** or an **employee** who has **your** permission, whilst such vehicle is being moved for the purpose of allowing free movement of any vehicle owned, hired by, or loaned to **you** or **your employee**.

Provided that:

- (a) movements are limited to vehicles parked on, or causing an obstruction to **your premises** or site at which **you** are working, or which are interfering with the **business**;
- (b) the vehicle causing the obstruction will only be driven by a person competent to drive the vehicle;
- (c) the vehicle causing the obstruction is driven using the owner's ignition key.

We will not cover **you** under this Extension for:

- (i) against damage to the vehicle; or
- (ii) where compulsory insurance or security is available under any road traffic legislation governing the use of the vehicle.

For the purposes of this Extension, Exclusion 16 under exclusions applicable to Section 6 will not apply.

Exclusions Applicable to Section 6

The following exclusions apply to this Section, as well as the General Exclusions of this policy.

1. Aircraft/Watercraft

We will not cover **you** against liability including costs and expenses arising from the ownership, possession, or use by **you** or on **your** behalf or by **your employees** of any:

- (a) aircraft or other aerial device for travel through air or space;
- (b) watercraft but this exclusion shall not apply to liability caused by:
 - (i) those used for **business** entertainment purposes within inland waters; or
 - (ii) hand propelled or sailing watercraft within inland waters and not exceeding 75 feet in length
- (c) hovercraft or hydrofoil.

2. Care, Custody and Control

We will not cover **you** against liability including costs and expenses for loss of, or damage to, **property** belonging to, or in **your** care, custody, or control, other than:

- (a) **employees'** or visitors' personal effects;
- (b) any premises including its contents, not being premises leased or rented to **you**, which are temporarily occupied by **you** for the purpose of carrying out work in or to such premises;
- (c) premises (including the fixtures and fittings) leased, rented or hired to **you**, but this Section does not cover **your** liability solely under the terms of any tenancy or other agreement;
- (d) equipment not belonging, leased, rented or hired to **you** but temporarily in **your** charge for the purpose of carrying out work.

3. Contract Works and J.C.T. Liability

We will not cover **you** against liability including costs and expenses in respect of loss of or damage to any **property**

- (a) comprising or to be incorporated in the **contract works** in respect of any contract undertaken by **you**;
- (b) against which **you** are required to effect insurance under the terms of Clause 6.5.1. of the J.C.T. (R.I.B.A.) Conditions of Contract or of any other contract condition requiring insurance of a like kind.

4. Cyber Risks

We will not cover **you** against liability including costs and expenses:

- (a) any loss, damage, liability, claim, fines, penalties, cost or expense of any nature directly or indirectly caused by, contributed to by, resulting from, arising out of or in connection with any:
 - (i) **cyber act** or **cyber incident** including, but not limited to, any action taken in controlling, preventing, suppressing or remediating any **cyber act** or **cyber incident**; or
 - (ii) loss of or damage to any **data** wherever it is stored.
- (b) however, this exclusion will not apply in respect of any actual or alleged liability for and/or arising out of:
 - (i) **bodily injury**; or
 - (ii) physical damage to or destruction of **property**,
resulting from or arising out of a **cyber incident**, unless that **cyber incident** is caused by, contributed to by, resulting from, arising out of or in connection with a **cyber act**.

5. Damage to Products, Recall and Repair

We will not cover **you** against liability including costs and expenses:

- (a) for loss of or damage to **product**, supplied, delivered, installed or erected by **you** or on **your** behalf;
- (b) all costs of or arising from the need for making good, removal, repair, rectification, replacement or recall of
 - (i) any **product**;
 - (ii) any defective work executed by **you** or on **your** behalf.

Except that (a) and (b)(i) above will not apply to liability in respect of loss of or damage to **products** if such loss or damage is caused by or arises from

- (i) any alteration, repair or servicing work executed; or
- (ii) any **product**, supplied, delivered, installed or erected

by **you** under a separate contract.

6. Efficacy

We will not cover **you** against liability including costs and expenses arising out of the failure of a **product** or any part thereof to fulfill the purpose for which it was intended or to perform as specified, warranted or guaranteed.

7. Employee

We will not cover **you** against liability including costs and expenses for **bodily injury** sustained by an **employee**, which arises out of and/or in the course of his employment or engagement by **you**.

8. Fines Penalties and Punitive

We will not cover **you** against liability including costs and expenses for fines, penalties, punitive damages, or exemplary damages.

9. Fireworks and Pyrotechnics

We will not cover **you** against liability including costs and expenses arising directly or indirectly in connection with the installation, erection, supply, repair, maintenance, display, alteration, treatment, sale of any fireworks or pyrotechnics, other than any stage pyrotechnic devices or stage special effects installed and/or erected as part of any entertainment show or event.

This Exclusion does not apply when **you** have contracted with a properly licenced entity or person who operates such fireworks or pyrotechnics.

10. Offshore Installation

We will not cover **you** against liability including costs and expenses arising out of any **offshore installation** owned, operated or controlled by **you** and any liability arising out of activities performed on any **offshore installation**.

11. PFAS and Alternative Chemicals

1. **We** will not cover **you** against liability including costs and expenses arising out of all actual or alleged:

- (a) loss,
- (b) damage,
- (c) compensation,
- (d) injury or death,
- (e) sickness or disease,
- (f) medical payment,
- (g) defence cost, or

any other amount, directly or indirectly and regardless of any other cause contributing concurrently or in any sequence, originating from, caused by, arising out of, contributed to by, resulting from, or otherwise in connection with any **PFAS**.

2. (a) to (g) includes, but is not limited to, any cost to clean-up, detoxify, remove, monitor, contain, test for or in any way respond to or assess the effect of any **PFAS**.

3. For the purpose of this exclusion **PFAS** means:

- (a) the substances shown below;
- (b) any derivative(s) of the substances shown below;
- (c) any substance:
 - (i) that is used as an alternative to, or a replacement of, or in substitution of, or
 - (ii) which provides or is intended to provide the same or similar function to, the substances shown below;
- (d) any organic molecule, salt, free radical or ion, the composition of which includes at least one:
 - (i) perfluorinated methyl group (-CF₃); or
 - (ii) perfluorinated methylene group (-CF₂-).

4. This Section also excludes any loss, liability, cost or expense arising out of any allegation or claim that such chemical product is dangerous or accumulation of that product is toxic to people.

5. This Exclusion shall not apply to liability unrelated to the known or suspected harmful, injurious or damaging effects of the above for which this Policy would apply but for this Exclusion.

6. If **we** allege that by reason of this Exclusion that loss sustained by **you** is not covered by this Policy, the burden of proving the contrary will be on **you**.

12. Pollution

We will not cover **you** against liability including costs and expenses arising directly or indirectly from any **pollution or contamination**:

- (a) in the United States of America and/or Canada and/or their respective possessions or protectorates;
- (b) elsewhere in the world, other than in those countries or territories referred to in (a) above, except where the **pollution or contamination** results from a sudden, accidental, unexpected, and unintended, identifiable incident that takes place in its entirety at a specific identifiable time and place during the **policy period**.

13. Product

We will not cover **you** against liability including costs and expenses arising from injury, loss or damage caused by or arising from **products** in respect of

- (a) **your** liability solely under the terms of an agreement other than
 - (i) under any warranty of goods implied by law;
 - (ii) under any indemnity clause in any agreement between **you** and any independent carrier
 in respect of **bodily injury**, loss or damage caused by **products** entrusted to such carrier for transit by road, rail or waterway
- (b) any **product** installed or incorporated in any craft designed to travel in or through air or space and which to **your** knowledge was intended to be installed or incorporated in any such craft.
- (c) any claim made against **you** in any country outside the **EU** in which **you** occupy premises or are represented by any resident **employee** or holder of **your** power of attorney.

14. Professional Services

We will not cover **you** against liability including costs and expenses arising out of any act, error, or omission, in the provision for a fee of any advice, design services, instructions, or specification.

This Exclusion will not apply to first aid activities.

15. Property Damage Limitation

We will not cover **you** against liability including costs and expenses liability in respect of any loss of or damage to any ground (including but not limited to any pitch, grass area or athletic track) where such damage would be regarded as inevitable and arising in the ordinary course of the **business**.

16. Vehicles

We will not cover **you** against liability including costs and expenses arising from the ownership, possession, or use:

- (a) by **you**, or
- (b) on **your** behalf by an **employee**;

of any mechanically propelled vehicle or attached trailer, whilst in use in circumstances where compulsory insurance or security is required by and road traffic legislation,

This exclusion shall not apply to liability caused by:

- (i) the loading or unloading of any such vehicle or trailer, arising beyond the limits of any carriageway or thoroughfare;
- (ii) any self-propelled mechanical plant, or any machinery or apparatus attached to any other vehicle, whilst used as a tool of trade;

provided always that **you** are not entitled to cover under any other policy.

Conditions Applicable to Section 6

The following conditions apply to this Section, as well as the General Conditions of this policy.

1. Bona Fide Sub Contractors

In respect of work commencing within the **policy period**, **we** will not cover **you** in respect of **bodily injury**, loss or damage to **property** arising out of or caused by work undertaken on **your** behalf by Bona Fide Subcontractors unless such Subcontractors have in force throughout the duration of any work undertaken by them for **you**, and for which **you** obtain and retain a written record as follows:

- (a) Employers Liability insurance in accordance with any law relating to compulsory insurance of liability to employees; and
- (b) Public Liability insurance covering legal liability for **bodily injury** to any person other than as described above under (a) and loss or damage to **property** that:
 - (i) is subject to a limit of indemnity not less than that applying to this Section and shown in the Schedule;
 - (ii) includes an Indemnity to Principal extension; and
 - (iii) covers the work to be undertaken by Bona Fide Subcontractors on **your** behalf.

This condition does not apply where Bona Fide Subcontractors are engaged to carry out any work on **your** behalf in an emergency and there is insufficient time to obtain written evidence of insurance provided that **you** must obtain verbal confirmation from such Subcontractors that insurance is described in (a) and (b) above and is in force and confirm such conversation in writing and retain a copy as a written record.

2. Cross Liabilities

We agree that, if **you** comprise more than one party, **we** will treat each party as though a separate policy had been issued to each of them.

Provided that **our** liability in respect of any one claim, or in the aggregate during any one **policy period**, as applicable, will not exceed the **limit of cover** in respect of all parties.

3. Discharge of Liability

We may at any time, at **our** own discretion, pay to **you** the **limit of cover** under this Policy, or any lesser sums for which any claim(s) can be settled.

After the deduction of any sum(s) already paid in connection with such claim(s), **we** will not be under further liability, except for the payment of defence costs and expenses already agreed and incurred subject always to the **limit of cover**.

In the event of any claim(s) or series of claims resulting in **your** liability to pay in excess of the **limit of cover**, **our** liability by virtue of a judgement or settlement for such costs and expenses, will not exceed an amount being in the same proportion as the **limit of cover** bears to the total payment made by **you** or on **your** behalf in settlement of the claim(s).

4. Excess

The Excess will be subject to the following provisions:

- (c) where **we** have incurred expenditure in the defence and/or settlement of any claim the **excess** shall be payable in whole or in part:
 - (iv) at any stage when in respect of a claim or loss sums have been paid in respect of damages, claimant's and/or defence costs, and loss adjusting expenses;
 - (v) at the settlement or closure of any claim; or
 - (vi) where at **our** own discretion **we** so require.
- (d) **we** may at **our** own discretion, or where it is statutorily obliged to do so, pay sums falling within the **excess** to effect a settlement of any claim or potential claim, and, upon notification that such a payment has been made, **you** will immediately reimburse **us** for the payment.
- (e) the terms of this Policy, including without limitation those governing **our** rights in relation to the conduct and defence of claims and **your** duties in the event of a claim, will not be affected or modified in any way by the existence or application of the **excess**.

GENERAL EXCLUSIONS (applicable to all sections)

1. Asbestos

We will not cover **you** for any damage, cost, liability, cost and expense arising directly or indirectly from the manufacture, supply, installation, storage, ownership, possession, handling, use, repair, removal, stripping, dismantling, or disposal, of **asbestos**, or other materials, which **you** know, or has reason to suspect, contains asbestos.

For the purpose of this exclusion '**asbestos**' means asbestos or fibres or particles of asbestos or any material containing asbestos.

This Exclusion will not apply to Section 5 Employer's Liability.

2. Chemical, Biological or Nuclear Risks

We will not cover **you** against any loss **damage**, liability, cost or expense, arising directly or indirectly, consisting of or in connection with:

- (a) nuclear reaction, nuclear explosion, nuclear radiation or radioactive contamination, however such reaction, explosion, radiation or contamination may have been caused; or
- (b) chemical, biological, or bio-chemical contaminants or **pollutants**.

This Exclusion will not apply to Sections 5 Employer's Liability except for:

- (i) any principal of **yours**;
- (ii) cover assumed under a contract or agreement which would not have attached in the absence of such contract or agreement.

3. Cyber Risks Exclusion

We will not cover **you** under this Policy for:

- (a) **cyber loss**, unless subject to the provisions of paragraph 1;
- (b) loss, damage, liability, claim, cost, expense, directly or indirectly caused by, contributed to by, resulting from, arising out of or in connection with any loss of use, reduction in functionality, repair, replacement, restoration or reproduction of any **data**, including any amount pertaining to the value of such **data**, unless subject to the provisions of paragraph 2;

regardless of any other cause or event contributing at the same time or in any other sequence.

Subject to all the terms, conditions, limitations and exclusions of this Policy, **we** will cover **you** for:

- 1. Physical loss or physical **damage** to **property insured** caused by any ensuing fire or explosion which directly results from a **cyber incident**, unless that **cyber incident** is caused by, contributed to by, resulting from, arising out of or in connection with a **cyber act** including, but not limited to, any action taken in controlling, preventing, suppressing or remediating any **cyber act**.
- 2. The cost to repair or replace **media** itself plus the costs of copying the **data** from back-up or from originals of a previous generation, if the **media** owned or operated by **you**, suffers physical loss or physical damage covered by this Policy. These costs will not include research and engineering or any costs of recreating, gathering or assembling the **data**. If such media is not repaired, replaced or restored the basis of valuation will be the cost of the blank **media**. However, this Policy excludes any amount pertaining to the value of such data, to **you** or any other party, even if such **data** cannot be recreated, gathered or assembled.
- 3. In the event any portion of this exclusion is found to be invalid or unenforceable, the remainder will remain in full force and effect.
- 4. This exclusion takes priority over any other term in this Policy, and, where any conflict arises between this exclusion and any other wording in the Policy or any endorsement which relates to **cyber loss**, **data** or **media**, then this exclusion replaces that wording.

For the purpose of this exclusion the following definitions will apply:

Cyber Loss

any loss, damage, liability, claim, cost or expense of whatsoever nature directly or indirectly caused by, contributed to by, resulting from, arising out of or in connection with any **cyber act** or **cyber incident** including, but not limited to, any action taken in controlling, preventing, suppressing or remediating any **cyber act** or **cyber incident**.

Cyber Act

an unauthorised, malicious or criminal act or series of related unauthorised, malicious or criminal acts, regardless of time and place, or the threat or hoax involving access to, processing of, use of or operation of any **computer equipment**.

Cyber Incident

- (c) any error or omission or series of related errors or omissions involving access to, processing of, use of or operation of any **computer equipment**; or
- (d) any partial or total unavailability or failure or series of related partial or total unavailability or failures to access, process, use or operate any **computer equipment**.

5. **Deliberate actions**

We will not cover **you** under this Policy against any loss in respect of **damage** caused by a wilful act or neglect by **you** or on **your** behalf.

6. **Excess**

We will not cover the amount of the **excess** described in this Policy or shown in the Schedule.

7. **Fines or Penalties**

We will not cover **you** under this Policy against non-contractual fines, penalties, punitive or exemplary damages, or liquidated damages.

8. **Marine**

We will not cover **you** against any loss in respect of **property** that is covered by, or would, but for the existence of this Policy, be covered by any marine policy/ies, except in respect of any excess beyond the amount which would have been payable under the marine policy/ies had this insurance not been effected.

9. **Money**

We will not cover **you** against loss or shortages of **money** due to depreciation or currency fluctuation.

We will also not cover loss:

- (e) occasioned by errors or omissions;
- (f) recoverable from a specialist security carrier
- (g) from an unattended vehicle operated or under **your** control or under the control of any of **your employees**;
- (h) covered by a policy of fidelity guarantee insurance;
- (i) to electronic cryptographic or virtual currency, including Bitcoin or similar virtual currency.

10. **Nationalisation**

We will not cover **you** against any loss or liability arising directly or indirectly in consequence of nationalisation, confiscation, requisition, seizure or destruction by any government or any public authority.

11. Northern Ireland

We will not cover **you** against any loss arising directly or indirectly in consequence of riot, civil commotion and (except in respect of any loss by fire or explosion) strikers, locked out workers, persons engaged in labour disturbances or malicious persons in Northern Ireland.

12. Pressure waves

We will not cover **you** against any loss consisting of or in connection with pressure waves caused by aircraft, or other aerial devices, travelling at sonic or supersonic speeds, but this will not exclude subsequent loss which itself results from a cause not otherwise excluded.

13. Terrorism

We will not cover **you** against:

- (a) any loss occasioned by or happening through or in consequence directly or indirectly of an **act of terrorism** regardless of any other cause or event contributing concurrently or in any other sequence to the loss;
- (b) any loss cost or expense of any nature directly or indirectly, consisting of or in connection with, any action taken in controlling, preventing, suppressing, or in any way related to an **act of terrorism**.

In any action, suit, or other proceedings where **we** allege that by reason of the provisions of this Exception any loss is not covered any Section of this Policy the burden of proving that such loss is covered will be **your** responsibility.

For the purpose of this exclusion **act of terrorism** means any action, threat of action, or attempt at action, by any individual(s) or group(s) of individuals or body or organisation(s), whether acting alone, on behalf of, or in concert with any other body, organisation, or government, where such action, threat, or attempt is designed to influence, intimidate, or coerce, any government or international governmental organisation or the population or any section of the population, or any community, and the action, threat, or attempt, is made for the purpose of advancing a political, religious, or ideological cause.

Act of terrorism includes but will not be limited to:

- (i) the use of violence against any person;
- (ii) the causing of loss of, or damage to, **property**;
- (iii) acts which endanger a person's life;
- (iv) acts involving the use of biological or chemical materials or weapons, or any nuclear device, nuclear material, or radioactive substance;
- (v) acts which create a risk to the health of an individual, the public, or any section of the public;
- (vi) acts designed or intended to interfere with, disrupt, or cause the malfunction of, any electronic or mechanical equipment.

This exclusion will not apply to:

- (i) Section 5 Employer's Liability;
- (ii) Section 6 Public and Products Liability, when shown as covered in the Schedule;
- (iii) Section 1 Material Damage, Section 2 Business Interruption and Section 4 Money when Section 3: Terrorism is shown as covered in the Schedule.

14. **War**

We will not cover **you** against any loss or liability arising directly or indirectly, consisting of or in connection with:

- (a) war, invasion, act of foreign enemy, hostilities or a warlike operation or operations (whether war be declared or not) civil war, rebellion, revolution, insurrection, sabotage, mutiny, martial law, military or usurped power;
- (b) any action taken in controlling, preventing, suppressing or in any way relating to (a) above.

This Exclusion will not apply to Section 5 Employer's Liability.

GENERAL CONDITIONS (applicable to all sections)

1. Abandonment

You will not in any case be entitled to abandon any property to **us**.

2. Alteration of Risk

You must notify **us** as soon as possible if any changes occur during the **policy period** which materially increase the risk of accident, **bodily injury**, loss, **damage** or liability.

Following notification of any such change **we** will be entitled to vary the premium and terms for the rest of the **policy period**. If the changes make the risk unacceptable to **us** then **we** may no longer be able to provide **you** with cover.

If **you** do not notify **us** of any such change this Policy may be affected in one or more of the following ways depending on what **we** would have done had **we** known about the change in circumstances:

- (a) if **we** would not have continued to provide **you** with any cover **we** may treat this policy as if it did not exist from the date of the change in circumstances; or
- (b) if **we** would have applied different terms to the cover **we** may treat this policy as if those different terms applied from the date of the change in circumstances; and/or
- (c) if **we** would have charged you a higher premium for providing the cover **we** will charge you the additional premium which **you** must pay in full.

You should keep a record (including copies of letters) of all information supplied to **us** in connection with this insurance.

3. Assignment

You must not assign any of the rights or benefits under this Policy or any Section of this Policy without **our** prior written consent. **We** will not be bound to accept or be affected by any notice of trust charge lien or purported assignment or other dealing with or relating to this Policy or any Section of this Policy.

4. Automatic Reinstatement

In the absence of written notice by **us** or **you** to the contrary, the 'Aggregate' **limit of cover** under Sections 1 and 2 will not be reduced by the amount of any loss, unless the application of this condition is specifically excluded.

However, for this condition to apply **you** must pay the appropriate additional premium, agreed between **us** and **you**, on the amount of the loss from the date of loss to the date of expiry of the **policy period**.

5. Average

In respect of **property insured** on Day One basis, under Section 1 each **declared value** is to be subject to Average.

This means that:

- (a) if at the time of any **damage** the **declared value** for any item shown in the Schedule is less than the cost of its **reinstatement** at the start of this **policy period** then:
 - (i) the most **we** will pay for that **damage** will be limited to that proportion which the **declared value** bears to the cost of **reinstatement** at beginning of this **policy period**; and
 - (ii) **you** will have to pay the cost of the difference as though **you** were **your** own insurer.
- (b) if at the time of **damage**, the **limit of cover** stated in the Schedule is less than the value of the **property insured** then:
 - (i) **you** will be responsible for the difference in value; and
 - (ii) the most **we** will pay for **damage** will be limited to that proportion which the value of the **property insured** or **building** bears to **limit of cover**.

In respect of Section 2 -Business Interruption;

- (a) if the **limit of cover** by any item on **revenue** is less than the **annual revenue**, or
- (b) if the Departmental Trading condition applies and is less than the aggregate of the sum produced by the **annual revenue** for each department of the **business**, whether affected by the incident or not;

then the amount payable will be proportionately reduced.

The amount of the **annual revenue** will be proportionately increased when the **maximum indemnity period** exceeds 12 months.

6. Building Works on an Adjoining Site

You must give immediate notice to **us** in respect of subsidence, landslip, and ground heave.

If any building demolition or excavation operations are carried out on any site adjoining the **premises**, **we** will have the right to vary or cancel the cover against loss consisting of or connected with subsidence, landslip, and ground heave.

7. Contracting Purchaser

If, at the time of loss, the **insured** has contracted to sell his interest in any of the **premises** and the purchase has not been completed, if and to the extent the property is not otherwise insured against such loss by or on behalf of the purchaser, the purchaser will be entitled to benefit under section 1, without harm to the rights and liabilities of the **insured** and the **insurer**, until completion.

8. Contracts (Rights of Third Parties) Act 1999

A person who is not party to this Policy has no rights under the Contracts (Rights of Third Parties) Act 1999, or any subsequent legislation amending or replacing such Act, to enforce any term of this Policy but this will not affect any right or remedy available to a third party, which exists or is available separately from that Act.

9. Designation

For the purpose of determining the Item under which any property is insured the **insurer** agrees to accept the designation under which such property has been entered in the **insured's** books.

10. Discharge of Liability

We may at any time, at **our** own discretion, pay to **you**:

- (a) the **limit of cover** under this Policy, or
- (b) any lesser sums for which any claim(s) can be settled,

After the deduction of any sum(s) already paid in connection with such claim(s), **we** will not be under further liability, except for the payment of defence costs and expenses already agreed and incurred subject always to the **limit of cover**.

Provided that in the event of any claim(s) or series of claims resulting in **your** liability to pay in excess of the **limit of cover**, **our** liability by virtue of a judgement or settlement for such costs and expenses, will not exceed an amount being in the same proportion as the **limit of cover** bears to the total payment made by **you** or on **your** behalf in settlement of the claim(s).

11. Excess

All claims under this Policy for loss arising out of any one **occurrence**, will be adjusted separately. From the amount of each adjusted loss, the amount shown in the Schedule as the **excess** for the relevant Section will be deducted after application of the terms, conditions, and provisions of this Policy including any condition of Average.

The **limit(s) of cover** and **sub-limit** are inclusive of the **excess**.

12. Fraudulent claims clause

If **you** or anyone acting on **your** behalf, makes a claim which is fraudulent or fraudulently exaggerated or supported by false statement or means or evidence under this insurance contract, **we** :

- (a) will not be liable to pay the claim;
- (b) may recover from **you** any sums paid by **us** to **you** in respect of the claim;
- (c) may by notice to **you** treat the contract as having been terminated with effect from the time of the fraudulent act; and
- (d) **we** will not pay any claims and **we** will not be required to return any premium to **you**.

13. Loss Reduction Condition

If **you** do not comply with any part of any condition which makes payment of a claim conditional to **your** fulfilment of it, then **we** will not pay for any claim, except that where the condition concerned

- (a) operates only in connection with particular **premises** or locations, **we** will pay for claims arising out of an loss occurring at other premises or locations which are not specified in the condition;
- (b) operates only at particular times, **we** will pay for any claim where **you** show on the balance of probabilities that **your** non-compliance with the condition did not cause or contribute to the injury, loss, damage or liability which occurred;
- (c) would, if complied with, tend to reduce particular types of injury, loss, damage or, as the context may require liability, **we** will pay for any claim where **you** show on the balance of probabilities that its non-compliance with the condition did not cause or contribute to the injury, loss, damage or liability which occurred.

14. Non Aggregation of Limit

The maximum **we** will pay in respect of each Extension, will be the **sub-limit** subject to the **limit of cover** with respect to each item of cover listed in the Schedule.

Except with respect to claims under Section 1 – Material Damage, in the event a claim involves cover under more than one Extension of a Section, **you** will only be entitled to cover under the Extension which:

- (a) provides the more specific cover; or if there is not a more specific extension;
- (b) has the highest limit.

If a **policy limit of cover** is shown in the Policy or the Schedule, the maximum amount **we** will pay in respect of a single **occurrence** in total across all sections of this policy, irrespective of the number of **premises** or locations affected, will be the **policy limit of cover**.

15. Premium Adjustment

If any part of the premium or renewal premium is based on estimates declared by **you**, then **you** must keep an accurate record containing all relevant particulars in making that estimate. **You** must also allow **us** to inspect such record. in addition to any other declaration requirements specified in this policy, **you** must, within one month after the expiry of each **policy period**, provide **us** with a declaration, for such expired **policy period**, of:

- (a) wage roll,
- (b) payments to sub-contractors,
- (c) overall turnover;

The premium will then be adjusted based on the difference between the estimate and the declaration. The difference in premiums will be paid by or allowed to **you**. however, if **you** do not supply the information required under this general condition, then **we** will be entitled to charge a reasonable additional premium.

16. Professional Accountants

If **we** require any particulars or details contained in **your** books of account or other business books, records, or documents, for investigating or verifying any claim, a report may be produced by the professional accountants or auditors acting regularly for **you**, their report will be considered evidence of the particulars and details to which such report relates.

We will pay to **you** the reasonable charges payable by **you** to their professional accountants or auditors for producing such particulars or details or any other proof, information, or evidence, as may be required by **us**.

17. Reinstatement

If **we** elect or becomes bound to reinstate any **property insured**, **you** will at **your** own expense produce and give to **us** all such plans, documents, books, and information as **we** may reasonably require. **We** will not be required to reinstate exactly or completely but only in a reasonably sufficient manner, as circumstances permit. **We** will not in any case be bound to pay in respect of any one of the items shown in the schedule more than the **limit of cover** stated.

18. Several liability

This insurance may be provided by more than one insurer (if so, this will be stated in the "Schedule of Subscribing Insurers"). Each insurer is only responsible for their own share of the risk. For example, if one insurer has a twenty percent (20%) share, they will take twenty percent (20%) of the premium and is responsible for paying twenty percent (20%) of a claim. No one insurer is responsible for another insurer's share of the risk, in any circumstances.

19. Subrogation Waiver

We agree to waive any rights, remedies, or relief to which it might become entitled by subrogation against:

- (a) any company standing in the relation of parent to subsidiary (or subsidiary to parent) to **you**.
- (b) any company which is a subsidiary of a parent company of which **you** are a subsidiary.

In the event of **damage** not excluded under this policy to **computer equipment**, **we** will waive rights of subrogation against any user of the **computer equipment** provided that such user:

- (i) has **your** authority to use the **computer equipment**; and,
- (ii) will observe, fulfil and be subject to the terms, exclusions and conditions of this policy as if he/she were **you**.

20. Value Added Tax

To the extent that **you** are accountable to the tax authorities for Value Added Tax all terms in this Policy will be exclusive of such tax.

SANCTIONS NOTICE

We will not be deemed to provide cover and **we** will not be liable to pay any claim or provide any benefit hereunder to the extent that the provision of such cover, payment of such claim or provision of such benefit would expose that (re)insurer to any sanction, prohibition or restriction under United Nations resolutions or the trade or economic sanctions, laws or regulations of the European Union, United Kingdom or United States of America.

DATA PROTECTION NOTICE

How Liberty Specialty Markets uses your personal information

Liberty Specialty Markets takes the protection of your personal data seriously and is committed to protecting your privacy. There are a number of different companies within our group. The specific company within Liberty Specialty Markets which acts as the "data controller" of your personal data will be the organisation providing your policy as set out in the documentation that is provided to you. If you are unsure you can also contact us at any time by e-mailing us at:

dataprotectionofficer@libertyglobalgroup.com or by post at Data Protection Officer, Liberty Specialty Markets, 20 Fenchurch Street, London EC3M 3AW, UK. Where you provide us or your agent or broker with details about other people, you must provide this notice to them.

In order for us to deliver our insurance services, deal with any claims or complaints that might arise and prevent and detect fraud, we need to collect and process personal data. The type of personal data that we collect will depend on our relationship with you: for example as a policyholder, third party claimant or witness to an incident. Your information will also be used for **business** and management activities such as financial management and analysis. this may involve sharing your information with, and obtaining information about you from, our group companies and third parties such as brokers, credit reference agencies, reinsurers, claims handlers and loss adjusters, professional advisors, our regulators or fraud prevention agencies. we also collect personal data about our suppliers and **business** partners (such as brokers) for the purposes of **business** management and relationship development.

Please see the full privacy notice available at www.libertyspecialtymarkets.com/privacy-cookies for further information on how your personal data is used and the rights that you have in relation to the personal data we hold about you. Please contact us using the details above if you wish to see the privacy notice in hard copy.

COMPLAINTS PROCEDURE

Liberty Mutual Insurance Europe SE aims to provide a high quality service to all its customers. In the event that you are dissatisfied please contact us so we can do what we can to help. We take complaints very seriously and aim to address all concerns fairly and efficiently. If you feel that we have not offered you this standard or you have any questions about your contract or the handling of a claim, then in first instance you should contact your insurance broker or intermediary who arranged this insurance for you or the branch that issued the Policy.

If you are still not satisfied with the service and wish to make a complaint you may do so in writing or verbally using the contact details below, quoting your Policy and/or claim number:

Compliance Officer
Liberty Mutual Insurance Europe SE
20 Fenchurch Street,
London EC3M 3AW,
Tel +44 (0) 20 3758 0840
Email: complaints@libertyglobalgroup.com

or Compliance Officer
Liberty Mutual Insurance Europe SE
5-7 rue Leon Laval L-3372 Leudelange, the Grand Duchy of
Luxembourg
Tel +352 28 99 13 00
Email: complaints@libertyglobalgroup.com

If after making a complaint and you are still not satisfied you may be entitled to refer the dispute to the Financial Ombudsman Service (FOS) which is a free and impartial service, who may be contacted at:

Exchange Tower
Harbour Exchange
London, E14 9SR
Tel: 0800 023 4567
Email: enquiries@financial-ombudsman.org.uk

Alternatively as Liberty Mutual Insurance Europe SE is a Luxembourg insurance company, you are also entitled to refer the dispute to any of the following dispute resolution bodies:

Commissariat aux Assurances,
7, boulevard Joseph II,
L-1840 Luxembourg
(+352) 22 69 11 – 1
caa@caa.lu
www.caa.lu

or Médiateur en AssurancesACA,
12, rue Erasme,
L-1468 Luxembourg
(+352) 44 21 44 1
mediateur@aca.lu
[https://www.ulc.lu/fr/organes/detail.asp?T=2
&D=descr&ID=6](https://www.ulc.lu/fr/organes/detail.asp?T=2&D=descr&ID=6)

FOS

You also have the right to refer **your** complaint to the Financial Ombudsman free of charge, but **you** must do so within six (6) months of the date of the final response letter.

If **you** do not refer **your** complaint in time, the Ombudsman will not have **our** permission to consider **your** complaint and so will only be able to do so in very limited circumstances. For example, if the Ombudsman believes that the delay was as a result of exceptional circumstances.

The Financial Ombudsman Service Exchange Tower

London E14 9SR

Website: www.financial-ombudsman.org.uk

telephone: 0800 023 4567 or 0300 123 9123

Email: complaint.info@financial-ombudsman.org.uk

Using **our** complaints procedure or contacting the FOS does not affect **your** legal rights.

The European Commission has an online dispute resolution service for consumers who have a complaint about a product or service bought online. If **you** choose to submit **your** complaint this way it will be forwarded to the Financial Ombudsman Service.

Visit <https://ec.europa.eu/odr> to access the Online Dispute Resolution Service.

Alternatively **you** can contact the Financial Ombudsman Service directly.

COMPANY INFORMATION

Liberty Mutual Insurance Europe SE (LMIE) trading as Liberty Specialty Markets, a member of the Liberty Mutual Insurance Group. Registered office: 5-7 rue Leon Laval, L-3372, Leudelange, Grand Duchy of Luxembourg, Registered Number B232280 (Registre de Commerce et des Sociétés). LMIE is a European public limited liability company and is supervised by the Commissariat aux Assurances and licensed by the Luxembourg Minister of Finance as an insurance and reinsurance company.

LMIE's UK branch registered address is 20 Fenchurch Street, London, EC3M 3AW which is authorised by the Commissariat aux Assurances and subject to limited regulation by the Financial Conduct Authority and Prudential Regulation Authority (registered number 829959). Details about the extent of regulation by the Financial Conduct Authority and Prudential Regulation Authority are available from LMIE on request.

www.libertyspecialtymarkets.com

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